

**MARITAL RIGHTS AND OBLIGATIONS IN ISLAMIC
LAW: A CRITICAL ANALYSIS OF ITS PRACTICE IN
NORTHERN NIGERIA**

BY

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DECLARATION

I declared that this dissertation entitled “Marital Rights and Obligations in Islamic Law: A Critical Analysis of its practice in Northern Nigeria” is a product of my research work. It has not been presented in any previous application for a higher degree.

The information derived from the literature had been duly acknowledged in the text and a list of references provided. No part of this dissertation was previously presented for another degree or diploma at any university.

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CERTIFICATION

This dissertation entitled Marital Rights and Obligations in Islamic Law: A Critical Analysis of its practice in Northern Nigeria by BAKARE, Sherifat Oluwatoyin meets the regulations governing the award of the degree of Master of Laws LL.M, Degree of Ahmadu Bello University, Zaria, and is approved for its contribution to knowledge and literary presentation.

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DEDICATION

This work is dedicated to Almighty Allah.

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All praises is due to Allah the Lord of the worlds, The most Beneficent The most Merciful.

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ABSTRACT

Marriage under Islamic law, as an institute is generally the cradle of any legitimate family and society. Hence the success of marriage must eventually lead to the success and development of the society. Where however marriage is marred with multiple problems and instability, no meaningful family life and relationship can be achieved and that may lead to the degeneration of the entire society. Nowadays in our society, spouses are ignorant of their rights as well as their corresponding duties that are imposed by Allah in relation to marriage. Also rights of wives are being violated, especially the right to maintenance and general care. Consequently this dissertation aimed at examining the Islamic law relating to marriage and marital rights and duties of spouses and critically analyse the practice of the Muslims in regards to rights and duties in marriage as well as to examine the compliance of the Muslims to the Islamic law on marriage. In this work, both doctrinal and empirical approach was adopted. The doctrinal research was achieved by the study of the Qur'an, Hadith and Islamic jurisprudence as well as case study. The empirical approach was carried out through the preparation and distribution of questionnaire and analysis of data. The result showed that there are lapses in adherence to Islamic provisions in relation to marital rights and obligations by the spouses in both rural and urban areas. It was also found that spouses are ignorant of their respective Islamic rights and obligations which as a result end up in dissolution of marriages. The work recommended that, all intending couples should endeavour to be educated about their rights and responsibilities as husband and wife and there should be massive enlightenment campaign in order to reduce dispute, and aggrieved spouse should seek redress in the court.

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CHAPTER ONE

GENERAL INTRODUCTION

1.1 Background of the Study

Marriage is a social union or legal contract between people that creates kinship. In the *Shari'ah* marriage is a relationship of mutual love, mercy and kindness. In Islamic law marriage is civil contract between parties which allows them mutually to agree upon the terms and conditions of their future together. Marriage as the holy Quran stresses, is a strong bond and binding commitment to life itself, to society and to the normal and healthy survival of the human race¹. It is commitment that married spouses make to one another as well as to Almighty Allah. It is the kind of commitment in which they find mutual fulfillment, self realisation, love and peace, compassion, serenity, comfort and hope². Allah describes marriage and marital relationships between man and woman as one of his great bounties on mankind for which they should be grateful and they should demonstrate their appreciation of his bounties by being God-fearing. Allah says in the Quran-

Mankind, fear your lord, who created you from a single soul, created of like nature its spouse from a single soul, and from the pair of them scattered countless of men and women, reverence God in whose name ye plead with one another and (reverence) the wombs (that bore you). Surely God ever watches over you³.

1Monzer.kahf.com; A Handbook on Marriage with marriage contract and marriage Certificate.www. Monzer.kahf. com. 2007 p.2
Accessed 15 Nov. 2011

2Ibid

3Qur'an 4vs 1 Muahammad T. A. and Muahammad M. K.(1996). A summarized version of At- Tabari, Al Qurtubi and ibn Kathir with comments from Sahih Al-Buhari Darussalamu publisher and distributor Riyadh Saudi Arabia

Marriage is one of the greatest signs of Allah, along with marriage come affection, love and mercy. Allah the Almighty says:

And among His signs is that He created for you, of yourselves, spouses that you may dwell in tranquility with them, and Has set love and mercy between you, surely in that are indeed signs for those who reflect. He also says it is He who have created man from water, and made him kindred of blood and marriage, your Lord is All powerful⁴.

Under Islamic law, marriage is considered both a social agreement and a legal contract. Thus, as in any other contract there are elements which are considered essential to its existence. Because of the importance of marriage in Islam, the *Shari'ah* gives the marriage contract a special attention and provides for certain elements that are essential to the validity of the contract according to Maliki and majority of the scholars. They are as follows:

- i Offer and acceptance
- ii Consent of the parties
- iii The *wali*
- iv *Sadaq*
- v Witnesses
- vi Prohibited degree of marriage⁵

There must be offer from the guardian of the lady and there must be acceptance from the other party. In essence the consent of the parties to the contract is essential to the validity of the contract⁶.

4 Quran 30 vs 21

5Gurin A.M. (2001) An Introduction to Islamic Family Law Al-rauf Press Limited, Zaria, p.48

6Ibid

A *wali* is the closest Muslim male kin of the bride. It is the man who would be her guardian if she is a minor. Normally the *wali* is her father but in case he is not alive then her brother, son, paternal grandfather, paternal uncle e.t.c. may stand as a *wali*⁷.

Sadaq is a required marriage gift given by the groom to the bride. It is obligatory and makes a component of the marriage contract. It also represents the groom's commitment to take care of the family expenses including those of her personal needs. Allah says: "And give women (on marriage) their dowry as a pure gift"⁸.

Sadaq may be in money or in kind, but it should be specified in its kind and quantity in the marriage contract. *Sadaq* may be paid in full at the time of contract (or before), part of it or the whole may be postponed to a definite or indefinite date in the future⁹.

The presence of witness is essential to the validity of marriage contract. The Prophet is reported to have said that there is no valid marriage without witness¹⁰.

To this end, we will like to add that apart from the above mentioned elements which are also agreed upon by all the scholars of Islam, there is no other element that is so essential to the validity of marriage in Islam.

After the nuptial is tied and family is established, as the Almighty Allah and his messenger taught us how to go about the preliminaries of marriage, so also has he decreed some responsibilities for both spouses¹¹. Both man and woman have great responsibilities in establishing and nurturing a family unit. It is important for man and woman to have a clear

7Aljibaly M. The quest for love & mercy. Regulation for marriage & wedding in Islam Al-katab and as-sunnah publishing p.66

8Quran 4 vs 4

9Monzer.kahf. opcit p.20

10 Ibid

11Aljibaly M. opcit p.5

understanding of the great responsibilities that rest on their shoulders. That would make them work and cooperate well in order to fulfill their mission. There are certain rights that are due to the husband which are the duties and responsibilities of the wife to accord her husband, so also are rights due to the wife which are the duties of the husband to give to his wife failing which may lead to chaos and disorderliness in the family.

1.2 Statement of the Problems

- (i) Failure to abide by the duty to maintain wives and children is one of the major sources of instability of marriage. Instability may also arise where the spouses do not know their rights. Instability in marriage has also being attributed to failure of the spouses to abide by the law.
- (ii) In family issues it is often asked whether the women have any right at all in her marriage supported by law which can be enforced in the court of law, for instance a woman under Islamic law has the right to maintenance and where a husband is wanting in this obligation the wife is entitled to enforce this right by seeking redress in the court of law.

1.3 Scope of the Study

This research work is limited to the Islamic law of marriage, relating to marital rights and obligations from the point of view of the four Sunni schools of jurisprudence. The work is limited to a geographic sphere of the application of the four Sunni laws.

1.4 Objectives

The objectives of this research are:

- i) To examine the provisions of Islamic Law on marital rights and duties
- ii) To examine the extent of compliance by Muslims
- iii) To establish findings (prospect, problems and challenges)
- iv) To provide recommendations in accordance with Islamic law

1.5 Methodology

In this work, both doctrinal and empirical approach was adopted. The doctrinal approach was achieved by the study of Qur'an, Hadith and Islamic Jurisprudence as well as case study. The empirical approach was carried out through the preparation and distribution of questionnaires and analysis of the data.

1.6 Justification

There is need for periodical study of Muslim practice of marriage under Islamic law in order to establish the extent of compliance with the law

1.7 Literature Review

This definitely is not the first work in this area of law, quite a number of authors have discussed exhaustively on issues pertaining to preliminary steps to marriage in Islamic law, elements of marriage contract as well as the rights and obligations of spouses in Islamic law.

Thus the work of Abd al Ati¹², Abdul Rahman Doi¹³ and Muhammed Al –jibaly¹⁴ were of immense benefits in writing this dissertation.

12 Abd al Ati H. Family structure in Islam International Graphics Printing Service Brentwood Maryland 1982

13 Abdul Rahman D.Shariah. The Islamic law Tatta publishers London united Kingdom 1984

14 Al-jibaly M.Opcit p.7

Interestingly, though is the fact that the works of these authors are of great importance in any discussion on marriage in Islamic law, even though (with all sense of humility) they

can only be said to have stated the law as it is but have not addressed the contemporary practice and extent of compliance of Muslims with the Islamic law.

The work of Gurin A.M.¹⁵ is also a tremendous assistance in writing this dissertation, his work is not only the statement of the law as it is in the Qur'an and hadith of the prophet, but he also discussed some contemporary issues on marriage as they are currently, though very brief.

The work of Sajda Nazlee¹⁶ and Mohammed Ali Al-Hashim¹⁷ also contributed a lot to writing of this dissertation. Sajda pointed out a lot of damages that the concept of feminism and women liberation which is rooted in western thinking has done Muslim women and also pointed out the great respect and adornment that Islam has accorded to women.

The work of MT El- Imairi¹⁸ is also in line with that of Al-jibaly, Abdul Rahman and Abd al Ati, they have only stated the law without relating them to present day situation.

This literature will be incomplete without mentioning the work of Prof Ahmad Aliyu¹⁹ and Prof Jumai Audi²⁰ who have not only stated the laws as they are but have also related their works to the present day situation. Prof Ahmad pointed out the practices of Muslims nowadays that are not in accordance to the law. Though as detailed as it may be, he laid more emphasis on preliminaries of marriage and pointed out some practice by Muslims that are not in compliance with Islamic tenets, without delving into marital rights and

15 Gurin A.M.op cit p. 2

16 Muhammad A.H. The ideal Muslimah International Islamic Publishing House IIPH

17 Sajda N., Feminism and Muslim women. Ta-Ha publisher London 1996

18 El- ImairiM.T . Personal status in Islamic law 1982

19 Aliyu I.A Legal Basis and Objectives of Marriage Under Islamic Law (Unpublished) L.L.M Thesis faculty of law A.B.U Zaria 1988

20 Audi J.A. The rights of spouses in marriage under the statute and Islamic laws in Nigeria: an appraisal (unpublished) Faculty of Law A B U Zaria 2003

obligations as well as the critical analysis of the practices of Muslims in contemporary society. While Prof Audi's work is more of comparism between the provisions of English and Islamic law on marital rights and the obligations.

Also the work of Prof Indra who pointed out the practice of the Muslim in relation to the rights of women and the plight of Muslim women in marriage. The work of Muhammed Imran and Abubakar²¹ is also useful to this work, they stated the attribute of a good Muslim woman as well as her obligations in Islam. They quoted a lot of hadiths that are useful in this work.

The information available on the internet is also of great benefit to this work. These include Monzer Kahf²² and Hajia Bilikisu²³ who pointed out the plight of Muslim women in marriage in Northern Nigeria.

In all, the focus of this dissertation is the examination of the law on marriage right from the preliminary stage, contract of the marriage, right and obligation of spouses and also to relate the law to how it is being practice by the Muslim as well as to point out those practices that amount to deviation from the law.

1.8 Organisational layout

This research is made up of five chapters. Chapter one deals with preliminary issues, such as the problems of the research, the scope of the research, aims and objectives, justification, the methodology adopted in the research and literature review.

Chapter two examines the marriage contraction under Islamic law, selection of spouses, the prescribed elements to the validity of marriage contract.

21 Abubakar A.S. (2002). Husband-wife relationship, the Right of the Husband, p. 39.

22 Monzer.kahf.op cit p. 1

23 Yusuf B. Sexuality and the Marriage Institution in Islam: An Appraisal. Citizen Communication LMT Kaduna Retrieved on 20 Jan. 2014 from www.arsrc.org/downloads/uhss/bilikisu.pdf

Chapter three focuses on the right of the husband, the rights of Allah on both parties to the marriage as well as their mutual right. Chapter four examines the rights of the wife which is the obligation of the husband towards his wife while Chapter five focuses on the critical analysis of the practice of the Muslim with regards to rights and obligations of spouses in marriage. Chapter six contains data analysis, conclusion, findings of the research work and recommendation.

CHAPTER TWO

CONCEPTUAL CLARIFICATION OF MARRIAGE IN ISLAM AND OTHER RELATED ISSUES

2.1 Introduction

Marriage is one of the great signs of Allah. It is the cornerstone of Islamic society, it is the back bone of social life of Muslim communities. As the Holy Qur'an stresses, marriage is a strong bond and a binding commitment to life itself, to society, and to the normal and healthy survival of the human race. Marriage is the commitment that married spouses make to one another as well as to Almighty Allah. It is a kind of commitment in which they find mutual fulfillment and self realization, love and peace, compassion and serenity, comfort and hope¹. Allah [SWT] says in the Qur'an that He made all creatures in pairs: "And of everything, We created in pairs: that you may remember"². He also says: "And among his signs is that He created for you, of yourselves spouses that you may dwell in tranquility with them, and He has set love and mercy between you: surely in that indeed signs for those who reflect"³.

Allah (SWT) describes marriage and marital relationships between man and woman as one of his great bounties on mankind for which they should be grateful and they should demonstrate their appreciation of his bounties by being God-fearing:

He SWT says: Mankind fear your Lord, who created you from a single soul, created of like nature its spouse, and from the pair of them scattered countless men and women; Reverence God, in whose name ye plead with one another, and (reverence) the wombs (that bore you); surely God ever watches over you"⁴.

1 Monzer opcit p. 6

2 Qur'an 51 vs 49

3 Qur'an 30 vs 21

4 Qur'an 4 vs 1

Islam encourages marriage and frown on celibacy, it is expressly forbidden in Islam, it is in reality a violation of human nature⁵. The prophet(PBUH)is reported by ibn Masud to have said that: Young men! Those of you who can afford to get married should do so,[marriage]is the best check for [lustful]eyes and best[effective to maintain]chastity⁶.

2.2 Importance of Marriage

Islam unlike any other religion is a strong advocate of marriage. There is no place for celibacy in Islam,like in Roman catholicpriest and nuns. The prophet (PBUH) has said “there is no celibacy in Islam”.

Some of the followers of the earlier prophets have tried monasticism as a self discipline that could possibly bring them closer to Allah. However, they were not able to fulfill as well as they have hoped. The reason is simply that it contradicts human nature, and that is why it is not permitted in Islam⁷.The previous prophets of Allah have married women, and none of them was known to ascetic in regard to marriage. Allah (SWT) says “And we have surely sent messengers before you (O Muhammad) and granted them wives and offspring”⁸. The prophet Muhammad (PBUH) indicated that marriage is part of his Sunnah, and whoever neglects it is not of his true followers⁹. Even though he derived the greatest and highest satisfaction from the prayer, Allah’s Messengers (PBUH) expressed that he still had desire for worldly pleasure such as women and perfume. This is only natural for a human

5Abdul Rahman D.opcit p.120.

6 Transmitted by Bukhari and Muslim as reported. In: Al-Jibaly M. op cit p. 3.

7 Al-jibaly M. op cit p. 7

8 Qur’an13 vs 38

9 Recorded by Ibn Majah In: Al-jibaly M. op cit p. 7

messenger. Anas (reported that Allah’s Messenger (PBUH) said:Of your worldly life,I have been made to desire women and perfume. But the satisfaction of my eyes (or heart) has been made in the *salah*”¹⁰. The prophet is reported to have said to Uthman ibn Maz’un, who kept away from his wife because he used to stay awake for prayers at night and observe fasting during the day that “Othman Monasticism has not been enjoined upon us. Do you not have an example in me? By Allah,verily I fear Allah and safeguard His boundaries more than any of you”¹¹. The messenger of Allah (PBUH) is also reported to have said that “Verily, I sleep and pray, fast and breakfast, and marry women. Thus fear and revere Allah O Uthman, because your family has right upon you,your guests have a right upon you, and yourself (body) has a right upon you.So, fast and break fast, and pray and sleep”¹².

Under Islamic law, marriage is a religious duty and is consequently a moral safeguard as well as a social necessity. Islam does not equal celibacy with high “*taqwa*” / “*iman*”. The prophet has also said that “marriage is my tradition whosoever keeps away there from is not from amongst me”¹³. Anas reported that the prophet (PBUH) said that “He, whom Allah granted a good wife, has been helped to preserve half of his religion. He should then fear Allah in (preserving)the remaining half”¹⁴.

Marriage in Islam, is the only right form of relationship between man and woman, for it establishes a family and enable them to undertake and fulfill their social responsibilities

10 Recorded by Ahmad, an Nasai and others In :Al-jibaly M. op cit p. 6

11 Recorded by ibn Hibban, Ahmad and al-Tabarani (in kabir), verified to be authentic by al – Albani (irwa al-Galil no 2015)

12 Recorded by Ahmed and Abu Dawud. Verified to be authentic by al Albani (irwa al Galil no 2015)

13 Al-jibaly M. op cit p.10

14 Transmitted by Al- Tabarani and Al-Hakim; the latter said chain reporters are correct.

with devotion and sincerity. The purity, goodness and richness of human civilization depends on the goodness of the primary unit of the social order, which is the family. Therefore Islam lays greater emphasis on it and takes various practical, legal and other measures to build the family on a sound and proper footing which is marriage¹⁵. Marriage is regarded as a basic thing for maintaining a broader family structure and cohesiveness in the society. Allah says in the Qur'an "And Allah has made for you mates (and companions) of your own nature, and made for you out of them children and grandchildren, and provided for you sustenance of the best"¹⁶.

For Muslims to know how magnificent and important marriage is in the sight of Allah (SWT) the Qur'an and Hadith of the prophet (PBUH) encourage Muslims to marry. Allah says "And marry the singles from among you as well as such of your male and female slaves as are fit (for marriage)....."¹⁷. The prophet is reported to have said as quoted above that " marriage is my tradition whosoever keeps away there from is not amongst me"¹⁸. Allah (SWT) also says "And among His signs is that He created for you, of yourselves spouses that you may dwell in tranquility with them, and He has set love and mercy between you: surely in that are indeed signs for those who reflect"¹⁹.

The reason for the immense importance held by marriage in the lives of Muslims are summarized in the following points:

It is obedience to the command of Allah, who says in the Qur'an:" Marry those among you

15 Aliyu I.A opcit p. 76.

16 Qur'an 16 vs 72

17 Qur'an 24 vs 32

18 Aliyu I.A opcit p.9

19 Ibid p. 2

who are unmarried and your slaves and slave girls who are righteous. If they are poor Allah will enrich them from His overflowing favour”²⁰.

Marriage serves as preservation of faith and religion. A righteous wife helps her husband preserve half of his religion. She provides him with help, support and advice that help him obey Allah and abstain from sinning. Anas reported that Allah’s Messenger (PBUH) said “When Allah grant one a righteous wife, He has helped him (by that) to preserve half of his religion. Let him then fear and revere Allah in regard to the other half”²¹. In another hadith reported by Anas, the prophet (PBUH) said “When a person marries, he has (by that) completed half of his faith. Let him then fear and revere Allah in regard to the remaining half”²².

Marriage also serves as a means of preservation of chastity. Men have a natural desire for women, and vice versa. Shaytan takes advantage of that to entice men and move their lusts when a woman approaches or moves away from them. He pictures her to them in an attractive and appealing form, which may lead them to various forms of sins in compliance with their lusts. Usamah Bin Zayd reported that the Messenger of Allah (PBUH) said “I have not left after me a trial more harmful to men than women”²³. A married person has a quick means of protection against the Devil’s whispers and seduction.

Marriage enables the spouses to enjoy love, mercy and security. Love and mercy are important sentiments, that brightens one’s life and give one a feeling of reassurance, security and happiness. One of Allah’s (SWT) great favors is the love and mercy that He

20 Qur’an 24 vs 32

21 Recorded by at-Tabarani and al-Hakim. Verified to be Hassan by al- Albani(as Shiha no 625)

22 Recorded by at-Tabarani and al-Hakim In: Al-jibaly M. op cit p.10

23 Recorded by al Bukhari , Muslim, and others In: Al-jibaly M. ibid p. 11.

instills among the married couple. They dwell into each other just as one dwells into a house that gives him protection, security, and happiness. Allah (SWT)said “Among His signs is that He has created for you, from yourselves , spouses that you may dwell (in joy and security) unto them, and He set between you love and mercy; surely in that are signs for those who reflect²⁴.

It is following the guidance of our beloved prophet (PBUH) and the messengers of Allah since The Almighty Allah said in His description of the messengers: “We sent messengers before you and gave them wives and children too”²⁵.An aspect of Allah’s love for the human race lies in enabling them to have children perpetuate the human species. The child is the goal of both the legal contract and the physical pleasure it sanctions. However, there is no pleasure in the life of the Muslim which does not entail subsequent responsibility as shown in this case by the upbringing of children.

It gives repose and delight to the soul since sitting, looking at, and playing with one’s spouse allows the heart to relax and strengthens it for worship. Without this the soul would grow wearied and turn away from the truth. The Almighty says: “Among His signs is that He created for you spouses from yourselves so that you might find repose with them. And He has placed between you affection and mercy. In that,there are certainly signs for people who reflect”²⁶.

It fortifies the heart against shaytan by satisfying sexual desire and therefore averting the danger of unbridled sexual appetite.It is like an impregnable fortress which protect the

24 Qur’an 30 vs 21

25 Qur’an13 vs 38

26 Qur’an 30 vs 21

Muslim from fornication and so saves them from falling into abyss which plunges people into the lower level of hellfire in this world before the next.

It provides arena for combating and disciplining the lower self through taking care of the family and looking after their needs. Putting up with their faults, failings and striving to bring them up well and guide them to the right path. The Prophet(PBUH) said: “What a man spends on his family is *Sadaq*.” He said, “ A man is rewarded for a mouthful he gives to his wife”.

In addition, marriage is also a lawful way of fulfilling one’s desire. Allah (SWT) has instilled in the human beings, the desire for the opposite gender, this desire may be satisfied in unlawful ways that would have destructive effects on the individual and societies. Alternatively, one of Allah’s great favours on us is that he provided us with marriage as a lawful channel for venting our desires. Ibn Umar and Ibn Amr reported that the prophet (PBUH) said:“This life is a temporary accommodation, and the best of its accommodation is a righteous wife” ²⁷.

Furthermore, not only is marriage a lawful means of fulfilling a person’s desire, but is also a means of increasing one’s balance of good deeds. Abu Tharr reported that some of the companions of Allah’s messenger (PBUH) complained to him, “O Allah’s messenger! The wealthy people have taken away all the rewards. They pray as we do and fast as we do, and they give charities from their extra monies”. He (PBUH) replied:

“But has Allah not given you that which you may offer as charity? Verily:

27 Recorded by Muslim, Ahmad, and An-Nasa’i. In :Al-jibaly M. op cit p. 13.

- Every tasbih (saying “*Subhaanallah* – exalted be Allah”) is a charity;
- Every takbir (saying “*Allahu akbar* - Allah is the greatest”) is a charity;
- Every tahlil (saying “*La ilaha illallah* – there is no deity worthy of worship except Allah”) is a charity;
- Every tahmid (saying “*Alhamdulillah* – praise be to Allah”) is a charity;
- Commanding good is a charity
- Forbidding the evil is a charity;
- And having intercourse (with your wife) is a charity.

The companions asked “O Allah’s messenger! Would one of us fulfill his desire and yet get a reward for that?” He (PBUH) responded “assume that he directed it toward a prohibition (*Zina*), would that not result in a burden for him?

They replied, “Yes, indeed! He (PBUH) deduced: “Therefore, if he directs it towards that which is permissible (his wife), he gets a reward for it”²⁸.

Marriage allows a person to live in harmony with human nature upon which Allah created the people. It would eliminate from his feelings, conflict and dejection. As indicated earlier, abstaining from marriage is an unnatural act that has been prohibited by the prophet (PBUH). Sa’d Bin Abi Waqas and Samurah Bin Jundub reported that: “Allah’s messenger (PBUH) prohibited abstinence from marriage”²⁹.

Above all, when a man gets married it enables such person to deserve Allah’s help. The prophet of Allah (PBUH) indicates that Allah promises to help any person who aspires to marry in order to avoid sinning. Abu Hurayrah reported that Allah’s messenger (PBUH)

²⁸ Recorded by Muslim, Ahmad, and others. In: Al-jibaly M. op cit p. 14.

²⁹ Sahih Buhari vol 3, Dar Al- kotob Al- ilmiyah Beirut London first Edition 2003.Hadith 5073 p. 362.

said: “there are three individuals that it is a right upon Allah to help them: a fighter for Allah’s course, a mukatib who want to pay himself off, and one who seeks marriage for the purpose of preserving his chastity”³⁰.

In another report, Abu Hurayrah said that Allah’s messenger said “it is a right upon Allah to help one who seeks to marry for the purpose of avoiding what Allah has prohibited”³¹. Truly man should be amazed at the wisdom of the way his lord deals with the sexual instinct. It allows the sexual appetite to be satisfied, provides man with progeny and encourages to strive on behalf of his family. Every aspect of the human self is taken into account and the result is a pure fruit whose fragrance permeates all parts of Muslim society. Muslims are encouraged to satisfy their sexual instinct and by doing so achieve in this world and the next.

2.3 Sharia Ruling on marriage

In Sharia, there are four cases of rulings on marriage;

- (i) Obligatory
- (ii) Recommended
- (iii) Permissible
- (iv) Forbidden³²

Marriage is obligatory when a person can meet its requirement both physically and financially. Also when he or she needs it and he or she fears that he or she may commit unlawful sexual practice³³.

30 Recorded by Ahmad, Al-Tirmidhi, An-Nasa’i and others. Verified by Hassan by Al-Albani (Sahih ul-Jami No. 3050)

31 Recorded by Ibn Adiyy. Verified to be hasan by Al-Albani. (Sahih al-Jami no 3152). Al-jibaly M. op cit p. 20.

32 Monzer.kahf op cit p. 7

33 Ibid

Marriage is considered strongly recommended in case of need and ability without fear of committing sinful practices. Some individuals are capable of marrying and maintaining the wife, and are desirous of marriage, they are confident of safeguarding their chastity against illegitimate sexuality. For these, marriage is recommended³⁴.

However, according to the Maliki school, it is obligatory (Fard) for a Muslim to marry even though he may not be in a position to earn his living on the following conditions:³⁵.

1. If he fears that by not marrying he will commit fornication (*Zina*).
2. If he is unable to fast to control his passion or that he can fast but his fasting does not help him to refrain from adultery.
3. He cannot even find a slave girl or an utterly poor girl to marry³⁶.

Some jurists disagree on this point and suggest that if he cannot procure lawful livelihood, he must not marry. If at all he married without any hope of getting lawful bread, he will commit theft. Thus in order to avoid one evil, he will be a victim of another evil³⁷.

The Hanafi School considers marriage obligatory on the following four conditions:

- i. If a man is sure that he will commit *Zina*, if he did not marry;
- ii. If he cannot fast, or even if he can fast, it does not help him to control his passion. If fast help him, he must fast rather than marry;
- iii. If he cannot find a slave-girl to marry;
- iv. If he is able to pay dower (*Sadaq*) and he is capable to earn lawful livelihood. If he is not capable to earn his livelihood lawfully, it is not obligatory for him to marry³⁸.

34 Aliyu I.A.opcit p.81

35Al Jaziri A. R. Kitab Al Fiqh alal Madhahib al-Arabiah vol. iv, p. 4: In AbduRahman D. p. 118

36Abdul Rahman D. opcit p. 118

37Maududi A. A. Tafhim al-Qur'an (the meaning of the Qur'an) Vol. 1. Lahore. 1971 (p.154-155).

38Qur'an 5 vs 5

Marriage is forbidden (*haram*) to a man if he does not possess the means to maintain his wife and children or if he suffers from an illness serious enough to affect his wife and his progeny. It is not desirable (*Makruh*) for a man who possess no sexual desire at all or who has no love for children, or who is sure to be slackened in his religious obligations as a result of marriage³⁹. The prophet (PBUH) enjoined on his followers to contract marriage because he had a definite object in view for them. There is a hadith which is narrated by Anas (may Allah be pleased with him) that the messenger of Allah (PBUH) said “when a man marries, he has fulfilled half of his religion. So let him fear Allah regarding the remaining half”⁴⁰.

The prophet (PBUH) considered marriage for a Muslim “half of his religion” because it may shield him from promiscuity, adultery, fornication, homosexuality, and the life which ultimately lead to many other crimes including slander, quarrel, homicide, loss of property, and the disintegration of the ideal family system on which so much stress has been placed by the Holy prophet Muhammad (PBUH). According to the prophet (PBUH), the remaining half of the faith which is complimentary to the first half, can be saved by *taqwa* (i.e. fear of Allah and righteousness)⁴¹.

2.4 Prohibited Degrees of marriage

The law of marriage has been so framed by the *Shari'ah* that they may help to establish an ideal Muslim ummah. To this end, the Qur'an and the Sunnah have prescribed the

³⁹Sayyid S. C. F. *fiqh al-Sunnah*. p 208-209.

⁴⁰ Recorded by ibn Hibban, Ahmad and al-Tabarani (in kabir), verified to be authentic by al – Albani (irwa al-Galil no 2015) In Al-jibaly M.op cit p. 10

⁴¹ Abdul Rahman D.opcit p 119.

prohibited degrees in marriage which can be divided into two categories:

- i. The permanently prohibited degrees and
- ii. The temporarily prohibited degrees⁴²

2.4.1 The permanent prohibitions

The permanently prohibited degrees are contained in surah Al-Nisai;

“And marry not those women whom your father married, except what had already happened (of that nature) in the past. Lo! It was even lewdness and abomination; and an evil way⁴³.”

Forbidden unto you are your mothers, and your daughters, and your sisters and your father’s sisters, and your mother’s sister and your mother’s daughters and sister’s daughters, and your foster mothers, and your foster sisters, and your mothers in-law and your step daughters who are under your protection (born) of your women unto whom you have gone in – but if ye have not gone into them, then it is no sin for you (to marry their daughters). And the wives of your sons who (spring) from your own loins. And (it is forbidden unto you) that ye should have two sisters together, except what hath already happened (of that nature) in the past. Lo! Allah is ever forgiving, merciful⁴⁴.

From the above verses it is clear that a Muslim must not marry the following;

1. His mother
2. His step mother(s): in the jahiliyyah period, a stepson or brother inherited his father’s widow(s).

42 Ibid p. 124

43 Qur’an 4 vs 22

44 Qur’an 4 vs 23-24

3. His grandmother(s) (grandmothers include father's and mother's mothers howsoever high);
4. His daughter(s): daughters include the granddaughters i.e. sons daughters howsoever low
5. His sister(s); including full, or consanguine and uterine sisters;
6. His father's sister(s): including the grandfather's sisters);
7. His mother's sister(s): including the grandmother's sisters
8. His brother's daughters'
9. His foster mother;
10. His foster mother's sister;
11. His sister's daughter(s);
12. His foster sister;
13. His wife's mother
14. His stepdaughter (such a daughter should have been born by his wife with who he has consummated his relationship. If the marriage was not consummated, there is no prohibition;
15. His son's wife (this will not include the wife of persons whom one treats as one's adopted)⁴⁵.

2.4.2 Temporary prohibition

Temporary prohibitions are those which can be removed by a change of circumstances.

⁴⁵Abdul Rahman D. (1984).opcit p.125

They are as follows:

1. A man must not marry two sisters in marriage at one and the same time. The temporary prohibition here gets removed as soon as his wife dies and he takes her sister in marriage. The provision also applies to a wife's aunt as well as niece;
2. A man must not marry a married woman. But the impediment is removed immediately on the dissolution of her marriage either by death of her husband or divorce followed by completion of the period of iddah (retreat);
3. A man must not marry more than four wives at a time. But the impediment is removed as soon as one of the wives dies or is divorced;
4. A man must not marry a woman during her iddah. But the impediment is removed as soon as the period of iddah expires⁴⁶.

This means that a man shall not make a specific proposal to a woman in iddah. However one can send implied words like the following to a woman whose husband dies or who has been irrevocably divorced: "I wish to find a woman of good character"⁴⁷.

2.5 Selection of Spouses

The success of marriage depends on the rightful selection of partner, because marriage in Islamic law has certain objectives, the achievement of which depends on the type of partners that enter into it. That is, Islam explains in details, the descriptions and qualities of partner with whom these objectives may be achieved. These description and qualities pertains to both man and woman⁴⁸.

In Islam, a man is given some choice in regards to marriage. Allah says in the Qur'an: "if

⁴⁶Ibid p.126

⁴⁷Ibid p. 126.

⁴⁸ Aliyu I.A.opcitp. 85.

you fear that you will not deal justly with the orphan girls, then marry whatever pleases you of (other) women: two or three or four. But if you fear that you will not be just (with them) then (marry) only one woman, or those that your right hands possess (of captives and slaves). That is better in preventing you from doing injustice”⁴⁹.

2.5.1 Qualities of a good Spouse

Some of the qualities are as follows:

1. Righteousness

The first and foremost vital quality for a wife is righteousness. A God fearing and understanding wife makes life enjoyable and striving pleasant. Thus the prophet (PBUH) urges the men to seek women of faith and piety and indicated that a man attains happiness through marrying such women.

Abu Hurayrah reported that the messenger of Allah (PBUH) said: “a woman is sought in marriage for four reasons; wealth, social status, beauty, and deen. So seek the one with deen – may you then be successful⁵⁰.

2. Ability to bear children

The prophet (PBUH) is reported to have said: “get married, because I will be exhibiting your large numbers (on judgement day)⁵¹.

Since one of the most important purposes of marriage is procreation, it is recommended to marry a younger woman who would normally be more likely to bear many children. In turn, this is more likely to apply to virgins than non-virgins.

49 Qur'an 4 vs3

50 Recorded by al-Bukhari, Muslim, and others. In: al-Jibaly M. (2000). op cit p. 24.

51 Recorded by Ibn Majah. Verified to be authentic by al-Albani (Sahih-ul-Jani No. 1514).

Abdullah bin Mas'ud reported that Allah's messenger (PBUH) said:

“marry virgins, because they have sweeter mouths (talk) and more fertile wombs, and are easier to be satisfied with little wealth”⁵².

3. Loving attitude

One should seek to marry a woman who is expected to have a loving and caring attitude towards her husband. This is normally possible to sense from the environment in which she lives and her family's reputation. The messenger of Allah is reported to have said: “The best of your women are those who are loving (to their husbands) comforting and tolerant – provided that they have *taqwa* of Allah”⁵³.

Ibn Abbas reported that Allah's messenger (PBUH) said: “your women who will be of the people of Jannah are those who are loving (to their husbands), bearer of many children, and concerned (about their husbands)”⁵⁴.

4. Good character

One should seek a wife who is known to be of good character or who has been raised in good moral atmosphere. In a hadith similar to the earlier one by Abu hurayrah, Abu sa'id al-Khudri reported that Allah's messenger (PBUH) said:

“A woman is usually married for one of three qualities: she is married for her wealth, she is married for her beauty; or she is married for religion. So take the one of religion and manners – may your right hand then be prosperous”⁵⁵.

A woman of low moral standard should be avoided, even if she had other attractive qualities such as wealth or beauty.

52 Recorded by at-Tabarani (in al-Khir). Verified to be authentic by Hasan by al-Albani (as-Sahihah no 623 and sahih ul-Jami no 2939).
53 Recorded by al-Bayhaqi (in as-Sunnah) and others. Verified to be authentic by al-Albani (Sahih ul-Jami no. 3330 and as-Sahihah no 1849).

54 Recorded by Tamman ar-Razi, Ibn Asakir, and others. Verified to be hasan by al-Albani (as-Sahihah no. 287).

55 Recorded by Ibn Hibban, Ahmad, and al-Hakim. Verified to be authentic by al-Albani (as-Sahihah no 307).

Abu Musa al-Ash'ari reported that Allah's messenger (PBUH) said: "There are three individuals that, when they supplicate to Allah (SWT) their supplication is not answered: a man who has a woman of bad character and he does not divorce her, a man to whom another man owes money and he does not have witnesses over him, and a man who give money to a weak-minded person"⁵⁶.

In the above hadith "bad character" pertains mostly to qualities such as being loose and promiscuous in dealing with men, making a woman's conduct dubious and her chastity questionable.

5. Virginity

Virginity is not a condition for marriage, but it is a recommended quality – provided that one has both options and that the woman he is considering are equal in other respects. Virginity then becomes a weighing factor for a number of reasons.

6. Contentment

An important quality to be sought in a wife is contentment. A dissatisfied wife will make her husband miserable and push him to do anything to please her. It is easier for a virgin than a non-virgin to be contented with husband's financial situation and with what he gives her. In a hadith similar to that of Ibn Mas'ud mentioned earlier, Jabir Bin Abdillah reported that Allah's messenger said:

"seek (in marriage) virgins, because they have more fertile wombs, sweeter mouth, less slyness, and are easier to be satisfied with little wealth"⁵⁷.

⁵⁶ Recorded by al-Hakim, Abu Nu'aym, and others verified to be authentic by al-Albani (Sahih al-Jami no. 3075 and as-Suhilah no 1805).

⁵⁷ Recorded by al-Tabarani (in al-Awsat) and ad-Diya ul-maqdisi. Verified to be authentic by al-Albani (as-Sahihah no 624 and Sahih al-Jami no 4053).

7. Beauty

Beauty, wealth, and prestige are all mentioned in the hadith of Abu hurayrah earlier mentioned, as being secondary qualities that should not be sought at the cost of righteousness.

8. Compatibility

A man should seek a wife who is compatible with him, and a woman should seek a husband who is compatible with her. A'isha (may Allah be pleased with her) reported that Allah's messenger (PBUH) said: "make a (good) choice for your sperm (i.e. offspring). Marry those who are compatible, and get married to them"⁵⁸.

2.6 *Khitbah*

When a man finds a woman of good attributes for marriage, his next step would be to propose to her or her family. This is called "*Khitbah*". It is the act of asking for a woman's hand in marriage.

If a man's proposal is accepted, the woman is considered "engaged" to him. This "engagement" counts as a legally unbinding attachment that precedes the full and binding attachment of the marriage contract. Even though an approved *Khitbah* is not legally binding upon two involved parties, it still constitutes a mutual pledge for marriage, and breaking it without a valid reason would be an immoral act of dishonesty. A valid reason for breaking a *Khitbah* would be for the bride's side to discover a serious problem in the bridegroom of which they were not aware when they gave the approval. Similarly, if the bridegroom discovers a problem in the bride that he did not know when he asked for her hand, he may take that as grounds for breaking the *Khitbah*.

⁵⁸ Recorded by Ibn Maja, al-Hakim, and others. Verified to be authentic by al-Albani (Sahih ul-Jami no 2928 and as-Sahihah no 1067).

When a man intends to marry a certain woman and prior to formally proposing to her, it is permissible to look at her and see as much of her as is legally allowed. This would help him make the right decision and be sure that he truly likes her to be his wife. The prophet (PBUH) recommended that in the selection of a spouse, a man shall see before betrothal, the intended bride lest a blunder in choice or an error in judgment should defeat the very purpose of marriage. However, a man should not throw a passionate gaze at the would-be bride but only have a critical look at face and hand to gain sufficient idea about her personality and beauty⁵⁹. If a man desires he may appoint a woman to go and see her and interview the would be bride, so that she could fully describe the type of woman she is⁶⁰.

The prophet (PBUH) is reported to have said that “when one of you courts a woman, if he could see of her as much as would convince him to marry her, he should do so”⁶¹.

When a man looks at a woman, that must be for the purpose of marrying her, and only if she is available for him to marry her. Looking for other reasons is a sin that must be avoided⁶².

Just as a man is allowed to look at his intended bride, a woman is also allowed to look at the intended husband, with the condition that she is only looking for the purpose of marrying and not for any other reason.

59Hashiya D. Vol.2, p. 215.

60Al-Jalil M. vol. 111 p. 405.

61Recorded by Abu Dawud, Ahmad, and other. Verified to be Hassan by al-Albani (as-Sahihah no 95 and irwa ul-Galil no 1791).

62Al-Jibaly M. .op cit p. 41.

2.7 The Prescribed elements

In Islam, there are procedures, rules and regulation on virtually every aspect of human life. Marriage is not left out, Islamic law has provided for things that are essential for the validity of marriage contract, and it must be kept in mind that Islamic law is a divine law and not a man made law and as such it is not within the capacity of anyone or a society to inject or remove, to increase or decrease, to take away or make any addition whatsoever to such rules. The essence of law in the society is to guide the conduct of the people and to see that people do not go astray.

Under Islamic law marriage is considered both a social agreement and a legal contract. Thus, like any other contract there are elements considered essential to its existence. They are as follows:

- 1) Offer and acceptance,
- 2) The *waliy*,
- 3) *Sadaq*,
- 4) Witnesses (*ash-Shuhud*)
- 5) Prohibited Degree of marriage

2.8 Sighah

Sighah in marriage contract consists of *al-Ijab* (the offer) and *al-Qabul* (the acceptance) *Ijab* here is the declaration of intention of one party to enter into marriage relationship with another party. In Maliki's school, offer is always expressed by the guardian of the woman or his representative⁶³.

One of the conditions of a valid marriage is the consent of the parties. Marriage by

63 Aliyu I. A. op cit p. 117

definition is a voluntary union of two people. The contract of marriage in Islamic law is essentially based on the consent of the contracting parties, there must be a meeting of the minds (*consensus ad idem*) considered juristically, marriage under Islamic law, is a bilateral contract. The contract is based on mutual consent of the contracting parties possessing legal capacity⁶⁴.

2.8.1 Consent of the Parties

The consent must be given by the parties themselves or an agent who can lawfully give consent or in the case of a minor by a guardian who is competent to bind the minor. The bride along one of the two individuals involved in the contract should have a say in regards to the partner with whom she would be associated in a long-term partnership⁶⁵. Aisha (may Allah be pleased with her) reported that Allah's messenger (PBUH) said:

“take the women's permission in regard to their private parts (i.e. marriage)”⁶⁶. The prophet of Allah (PBUH) said: “when one of you wants to give his daughter in marriage, he should take her permission”⁶⁷. From the above, it could be garnered that a bride's permission is a required element of the marriage contract. Without this permission, the contract is null and void or may be invalidated by the Islamic authorities based on the bride's request.

Depending on the bride's situation, the mode of her permission varies from being fully vocal and assertive to being passive and compliant with her *wali*'s decision. This will be discussed in the following paragraphs.

64 Gurin A.M. *opcit* p. 54.

65 Al-Jibaly M.*op cit* p. 60.

66 Recorded by Ahmad and an-Nasai. Verified to be authentic by al-Albani (Sahih ul-Jami no.930).

67 Recorded by al-Tabarani (in al-Kabir) and Abu Yala. Verified to be authentic by al-Albani (sahih ul-jami no 300 and sahihah no 1206).

2.8.2 Stipulations and Conditions in Marriage Contract

At the time of making the marriage contract, the two parties may wish to set the conditions whose violation would invalidate the contract. This is permissible and acceptable, as long as the conditions do not violate any Islamic principles.

Ugbah Bin Amir-al Juhani reported that the prophet (PBUH) said: “verily the condition that deserves to be fulfilled most are those which allow you access to the women’s private parts” (by marriage and intercourse)⁶⁸. If the conditions are Islamically acceptable, they must be fulfilled and violating them would be sufficient cause for the wife to petition the court for termination of the marriage if she so desire. However conditions that violate the Islamic teachings are automatically considered null and void, Aisha and Ibn Abbas (May Allah be pleased with both) reported that the messenger of Allah (PBUH) said: “every condition not according to the book of Allah is invalid even if it is stipulated hundred times”⁶⁹.

Stipulations which repeat or affirm the normal ingredient of a marriage contract such as the husband would pay *Sadaq* or that he should maintain the wife⁷⁰. Also all the conditions that benefit either party without compromising the objectives of marriage as are permissible, valid and binding such conditions may include matters like “She may work outside home and pursue her own career ” he provides for an in-house baby sitter”, “she will continue her education” “in the neighborhood of her family etc”⁷¹.

However, all conditions that contradict the objectives of marriage are not valid. An

68 Sahih Buhari vol 3, Dar Al- kotob Al- ilmiyah Beirut London first Edition 2003. Hadith 5151 p. 382

69 Sabiq S. Fiqhus-sunnah In: Aliyu I.A. op cit p. 127.

70 Gurin A.M.op cit p. 59

71 Monzer.kahf opcit at p. 21

example is a condition in a marriage that there must be no consummation or no living together, or that there should be no mutual right of inheritance between the two spouses, or that the husband should restrain from having sexual intercourse with her, such stipulations invalidate the marriage contract, it is contrary to the nature and object of marriage and they are null and void⁷².

2.8.3 Conditions regarding *sighah*

- 1) One of the conditions of *sighah* is that the expression used must denote marriage, regarding the expression used, all Muslim jurists unanimously agreed that if the expression used is such that denotes “marriage” such as *zawwajtu* (I have married.....) or “*Ankahtu*”(I have wedded), the marriage is valid. Hambali and Shafii jurists say it must in the above words. But the jurists differ if any other term is used such as “*wahabtu*” (I have donated.....) “*Bi’tu*” (I have sold) “*mallaktu* (I have given the ownership) or any other words such as the signifying pledge lending enjoyment or words which states that the marriage is going to be for a period of time. Any words which signify things other than marriage, to majority of the scholars is invalid. The *Qabul* on the other hand is response of the party to whom the offer is made. The Maliki, Hambali, and Hanafi jurists agree that, it can be in any expression or term that shows agreement with and acceptance of the offer, such as “*Qabiltu*”(I have accepted), “*wafaqtu*” (I have concurred), “*Raditu*” (I have agreed) e.t.c.⁷⁴
- 2) While the two parties are present at one and the same place and are capable of expressing the agreement verbally. Then they must pronounce the agreement verbally.

⁷³ Ibid

⁷⁴ Aliyu I.A.opcit p. 118

Signal or writing is not acceptable, unless the parties cannot express themselves verbally⁷⁵. Where one of the parties is present but cannot express himself verbally, for example if he is dumb then he can express himself through signal by which his intention could be understood by the witnesses⁷⁶. Even where one of the parties is not present at time of the contract, the agreement can be concluded in writing⁷⁷.

- 3) According to some Scholars both the *Ijab* and the *Qabul* must be in one sitting i.e it must be immediate, for example, if the guardian says “I have married you my daughter”, and then the people dispersed, and in another time the husband says “I have accepted” the contract here is invalid⁷⁸. While others say it does not have to be immediate, provided the meeting can be considered as one and the same.
- 4) Another condition of consent or offer and acceptance is that, the offer must correspond with the acceptance⁷⁹, for example, if Mr. A offers to marry his daughter Fatima to Mr B and Mr. B accepts the hands of Aisha in marriage such an offer is not valid. However if the inconsistency between the offer and the acceptance concerns the *Sadaq*, for example the offeror says “I have married you my daughter Aisha with the *Sadaq* of ₦10,000”, and the offeree says “I accept her with the *Sadaq* of ₦20,000”, then the marriage is valid.
- 5) Furthermore the parties must understand each other clearly. In other words, the offeree must ascertain that the offeror intends, by his expression, to establish marriage and

75 Aliyu I.A. opcit p.120

76 Ibid

77 Ibid

78 Ibid p.121

79 Ibid p.122

must know that the offeree genuinely accepts the offer. The word used must be directly derived from or intimately related to the root word of marriage⁸⁰

6) The offer and acceptance must be of immediate effect and not subject to the occurrence of something in future time. It must not be tied to certain term or subject to a particular term⁸¹.

2.9 Guardianship (*al-wilaya*)

Marriage guardianship is the legal authority invested in a person who is fully qualified and competent to safeguard the interests and rights of another who is incapable of doing so independently. It is the authority of a father or nearest male relative over minors, insane or inexperienced persons who need protection and guardianship⁸².

Marriage guardianship is one of the elements prescribed for the validity of marriage contract under Islamic law.

Marriage guardian may be natural, legal or contractual. It is natural when there is parental relationship between the guardian and his ward, it is contractual when the guardianship is by appointment e.g the (executor) appointed by the father, and it is legal when the appointment is by the court of law⁸³.

Marriage guardians are of two types:

The first are those who may impose their power regardless of the ward's wishes, they are known as *waliy Mujbir*. These are normally the nearest male agnate relative. The power he exercises is known as the power of compulsion (*ijbar*). The second type of marriage

80 Abd al Ati H. op cit p.5

81 Aliyu I.A op cit p.123

82 Abd al Ati H. op cit p.5

83 Gurin A.M. op cit p.64

guardian is the one who can only act as a legal representative (*wakil*) at the making of marriage contract within the limit of authority delegated to him by the ward and those are known as *waliy*, not *mujbir*⁸⁴.

The exercise of power of *ijbar* by some parents is in clear term a forced marriage. While it is true that the exercise of the power of *ijbar* is according to the Maliki School of thought, but there is no evidence for the exercise of such power in the Qur'an or the tradition of the Holy Prophet (PBUH). Forced marriage is always not in the best interest of the woman on behalf of whom the marriage is being contracted. It is also observed that the parent who exercise the power of *ijbar* are ignorant of the extent and limit of the power vested in them and as such they do go beyond their power. It is discovered that a lot of girls who found themselves in the situation of forced marriage have ran away and become prostitutes. Some would later lead to divorce while some would stay together with the husband and remain unhappy forever which consequently affects the society at large⁸⁵.

2.9.1 Marriage without Guardian

From all evidence on the marriage guardianship, both the Qur'an and the Hadith confirm that marriage guardianship under Islamic law is a condition necessary to the validity of marriage in Islam. Where a marriage contract is concluded without the *waliy* consent and approval such marriage is null and void. Aisha reported that the messenger of Allah (PBUH) said; Whichever woman marries without her *waliy*'s permission, her marriage is void, if he (the husband) performs intercourse with her (despite the invalidity of their marriage) the *Sadaq*

⁸⁴ Ibid p.69

⁸⁵ Aliyu I.A Opcit p.377

becomes her right because he has access to her private parts. And if they dispute with the *waliy* about this or other matters) the ruler would then be the *waliy* of the one who does not have a *waliy*⁸⁶. Yet in another Hadith, the Prophet (PBUH) is reported to have said that “a Marriage contract is not valid without *waliy*. And the (Islamic) authority is the *waliy* of the one who does not have a *waliy*”⁸⁷.

2.10 Sadaq

Sadaq is a required marriage gift given by the groom to the bride. It is obligatory and makes a component of the marriage contract. It also represents the groom commitment to take care of the family expenses including those for personal needs⁸⁸. Allah says ⁸⁹“And give women (on marriage)their dowry as pure gift”.*Sadaq* is sole right of the wife and no one may take any of it without her permission, not even her parents⁹⁰. In Islam, the *Sadaq* is paid to the bride, not to her parent. The prophet(SAW) paid *Sadaq* for all his wives and accepted *Sadaq* on his daughters. Even though all the jurists agreed that *Sadaq* is essential, they differ on whether it is a condition for validity of marriage or not⁹¹.

Hanafi, Hambali, and Shafii jurists hold the view that if the parties at the time of making the contract agree that there will be no *Sadaq* or something unlawful is given as *Sadaq*, such as pig or alcoholic drinks, the marriage is valid and the woman is entitled to proper and lawful *sadaq*⁹².

86 Recorded by Ahmad, Abu Dawud and others In Al-jibalyM.op cit p. 69

87 Ibid p. 67.

88 Monzer.kahf opcit p. 20

89 Qur'an 4 vs 4

90Al-jibalyM.opcit p. 72

91 Aliyu I.A.opcit p.212

92 Aliyu I.A.op cit p.213

All the Muslim jurists unanimously agreed that *sadaq* has no maximum limit, because there is no authority either in the Qur'an or Sunnah or any other legal source of Islamic law to that effect⁹³. But with regard to the minimum limit of *sadaq*, the Muslim jurists differ. Some jurists hold that *sadaq* has no minimum limit. This is the view of Shafii, Ahmad Is'haq, Abu Thawr. However, some other jurists hold that the minimum limit of *sadaq* is a quarter of Dinar, while the Hanafis say ten Dirham⁹⁴

2.11 Witnesses (*Shuhud*).

There are two opposing views as to whether the presence of witnesses in marriage contract is essential, the majority view is that it is essential⁹⁵. They relied on the saying of prophet (PBUH) that it is prostitutes that get themselves married without witnesses⁹⁶. The presence of witnesses in marriage is significant to make it clearly different from illicit relationship between a man and a woman⁹⁷.

One view is that the presence of witnesses in marriage contract is an essential element for validity of marriage. Thus no marriage is valid unless it is contracted in the presence of at least two competent witnesses. This is the view of the majority of Muslim jurists. They supported their view with the following authorities⁹⁸.

The hadith narrated by At-Tirmidh, on the authority of Abdullahi Ibn Abbas (R.A) that the prophet (PBUH) said: "it is the prostitutes that get themselves married without witnesses"

It was also narrated by ad-Daraqutni on the authority of A'isha (RA) that the prophet

93 Aliyu I.A op cit p. 213

94 Ibid p. 214

95 Ibid p. 132

96 Gurin A.M.opcit p. 60

97 Ibid

98 Aliyu I.A.opcit p. 132

(PBUH) said: “there is no valid marriage without witness”⁹⁹.

It was narrated from Abu-Zubair al-Maliki, that a case was brought to Umar, of marriage which have been witnessed by only one man and one woman, so he said, “This is a secret marriage and I will not permit it” had I been the first to come upon it, I would have ordered that they should be stoned (to death). It was reported by Malik in Al Muwatta¹⁰⁰. If the marriage is contracted in the absence of witness and then the guardian, after that, met two witnesses and informed them that he had married his daughter (or sister) to somebody (mentioning the name of the husband) and the husband also met two witnesses and informed them that he has married a woman (mentioning the name of the wife), the marriage in this case, is valid, provided that the witnesses of the guardian are different from the witnesses of the husband¹⁰¹.

If the marriage is consummated without two witnesses and the spouse confessed that they had sexual relationship, or has been testified by (four witnesses) then hadd punishment should be inflicted upon them, unless consummation had been publicized through *walimah* (marriage feast) or beating of drum etc¹⁰².

Some jurists hold that the presence of witnesses in marriage contract is absolutely not necessary. This is the view of Ibn Abi Layla, Abu Thawi, Abdul Rahman Ibn Moh’di, Abdullahi Ibn Idris and others. Imam Malik also has the same view provided the marriage is publicized through any other means before consummation¹⁰³.

99Ibid

100 Ibid p. 133

101Ibid p 134

102 Al-Juzari (nd), Al-Fiqh Al Madhabib Al-Arbar’ah Darul-Fikr, Beirut Vol. 4 p. 23.

103Malik I. (nd) Al mudawah Al-Kubra (Halabi Foundation, Cairo p. 193 In: Aliyu I. A. p.134

If the marriage is contracted and then kept secret between the parties and the witnesses, some jurists hold that the marriage is void because it is contrary to the publicity, which had been enjoined. This is the view of Shafii, Abu Hanifah, Umar Urwah and Sh'abi have the same opinion.

Imam Maliki is of the view that the marriage is invalid and that the couple must be separated and the separation be considered as one irrevocable divorce, if the marriage has not been consummated. But if the marriage is consummated, then the wife should be given her *Sadaq*¹⁰⁴.

106 Sabiq S.In: Aliyu I.A. op cit p.135

CHAPTER THREE

RIGHTS OF THE HUSBAND IN MARRIAGE UNDER ISLAMIC LAW

3.1 Introduction

Marriage is a bond held together by natural rights and responsibilities for each of the two spouses. It is a partnership between them, and they are both required to play an active role in that partnership. The man is appointed as the leader of the household, and the woman as the supportive helper whose expertise in many areas cannot be handled by the man¹. Both husband and wife have certain rights and duties. A happy and successful marriage is assured if both of them fulfil their duties and preserve each others' rights. Violating those rights is a certain way to misery and failure.

Both man and woman have a great responsibility in establishing and nurturing the family unit. They are the masters of their house. Abu Hurayra (RA) reported that Allah's messenger said: every soul of Adam's children is a master. The man is the master of his family, and the woman is the mistress of her house². Being master and holders of responsibility, both of them are also answerable before Allah (SWT) for their responsibilities. It is important for the man and woman to have a clear understanding of the great responsibilities that rest on their shoulders. That will make them work and co-operate well in order to fulfil their mission and be ready with the answers when they are questioned about their responsibilities.

There are certain rights that are due to the Almighty Allah which is imposed on the couple jointly by their creator. There are also rights that are due to each party to the union which

1 Al-Jibaly M. The Fragile Vessel Rights and Obligations between Spouses in Islam Al-Kitab & Sunnah Publishing. p. 1.

2 Recorded by Ibn us-sunni and Abu Bakr il-mugri. Verified to be Hassan by al-Albani cas-sahihar no. 2041 and Sahih al-jami no. 4565 In: Al-Jibaly M. p. 5.

are also imposed by Allah (SWT) on each of the couples. All the above together with the responsibilities of both parties towards each other shall be discussed extensively in this chapter, Allah willing. Before moving on to discuss the rights and responsibilities of the parties towards each other, we shall first discuss the rights of Allah on the couples.

3.2 Rights of Allah

i) Prohibition by affinity:

The Quran and Sunnah have prescribed the prohibited degrees in marriage which is divided into two categories:

- a) The permanently prohibited degrees; and
- b) The temporarily prohibited degrees.

The permanently prohibited women are the women that a man may never marry. Permanent prohibition can be as result of blood, marriage or foster (breast feeding) relationship. Allah (SWT) says in the Quran prohibited to you (for marriage are your mothers, daughters, sisters, paternal aunts, maternal aunts, brother's daughters, sister's daughters, foster mothers who breastfed you wives' mothers, step-daughters under your custody and born of your wives with whom you have had intercourse-but if you have not had intercourse with them, there is no sin upon you (if you marry them) ,the wives of your sons who are your own offspring and that you simultaneously marry two sisters-except for what has already passed. Indeed, Allah is forgiving and merciful. Allah (SWT) continue in the following verses that, and (also prohibited to you are) all married women, except those (captives and slaves) that your right hand possess. This is Allah's decree upon you. And are lawful to you all (women) beyond these, provided that you seek them (in marriage) with gifts from your monies, desiring chastity, not unlawful sexual intercourse. So for those whom you enjoy (in

marriage) from among them, give them their due compensation (*sadaq*) as an obligation. And there is no blame upon you for what you mutually agree (to give) beyond the obligation. Indeed Allah is knowing and wise³.

Temporary prohibitions on the other hand are those which can be removed by a change of circumstances. The crux of the matter here is that it is the right of Allah on both man and woman not to take in marriage any woman that fall in any of the categories stated by Allah (SWT) in the Quran so as to refrain from violating the rights of Allah upon the couples. However in case of a temporary prohibition, such woman can be taken in marriage when the prohibition is removed, for instance in the case of a woman in *iddah*. Such women can be proposed to and married after she might have completed the *iddah* period.

ii Iddah

Idda means a period of waiting from re-marriage after the death of a husband or separating or divorce from the husband. This is *wajib* (compulsory) since the injunction of the Quran is quite explicit on the subject Allah says⁴:

The divorced women shall wait concerning themselves for three monthly periods. Nor is it lawful for them to hide what God has created in their wombs, if they have faith in Allah and the last day. And their husbands have better wish to reconciliation. And women shall have rights similar to their rights against them according to what is equitable but men have a degree (of advantage) over them. And God is exalted in power wise⁶.

3 Qur'an 4 vs 22-24

4 Abdul Rahman D. opcit p. 125

5 Ibid

6 Qur'an 2 vs 228

The duration of iddah is prescribed by the Holy Quran as follows:

Such of your women as have passed the age of monthly courses, for them the prescribed period, if you have any doubt is three months and for those who have no courses (it is the same) for those who carry life (within their wombs) their period is until they deliver their burdens: and for those who fear God, He will make their path easy⁷.

The Quran laid down that there shall be no iddah for a woman who is divorced by her husband before he has consummated his marriage with her. The Quran says:

O you who believe! When you marry believing women and then divorce them before you have touched them, no period of iddah have you to count in respect of them: so give them a present and set them free in a handsome manner⁸.

But in the case of termination of marriage due to the death of the husband, the widows shall have an iddah of four months and ten days. The extra period of forty days seems to have been added to provide for mourning by the widow. The Quran says:

If any one of you die and leaves widows behind him, they shall wait concerning themselves for four months and ten days: when they have fulfilled their term, there is no blame on you if they dispose of themselves in a just and reasonable manner. And God is well acquainted with what you do⁹.

The different duration of idda can be summed up as follows:

- 1) Iddah of women who still menstruate: Three menstruations
- 2) Iddah of women who have passed the age of menstruation: three months
- 3) Iddah of a woman whose husband died: four months and ten days

7 Qur'an 65 vs 4

8 Qur'an 33 vs 49

9 Qur'an 2 vs 234

- 4) Iddah of a pregnant woman: until she delivers the baby
- 5) No iddah for a woman whose marriage is not yet consummated¹⁰.

Going by the above quoted Quranic injunctions, iddah is a right due to Allah (SWT) upon both spouses. Allah made it obligatory, for a husband to refuse his wife to observe the iddah period before sending her out will amount to transgression and disobedience to Allah. Likewise, a woman would also be committing sin for packing out of her husband's house and consequently separating from him without observing the period of iddah, as this would also amount to violation of the law of Allah. This is a right due to Allah the creator, none of the spouses have right to violate it unilaterally or bilaterally.

iii Inheritance

Allah (SWT) has also made it clear in the Quran that both spouses has the right to inherit each other. Where a husband dies leaving behind him a widow, the widow shall be entitled to his properties as follows:

- She takes a maximum share of $\frac{1}{4}$ of the net estate left by her deceased husband where the husband left no issue either from her or any other wife.
- She takes a minimum share of $\frac{1}{8}$ of the net estate of her deceased husband where he left children either from her or any other wife.
- On the other hand when a wife dies the husband takes half of his deceased wife's property if she leaves no child either for him or for another husband.

¹⁰ Abdul Rahman D. op cit p 200

If the deceased wife leaves a child or children, the husband gets only $\frac{1}{4}$ of the deceased wife's property. Where the deceased husband leaves more than one wife behind him and he has no child or children, all the widows are to share the $\frac{1}{4}$ portion of the property. However, where the deceased left a child or children the widows share the $\frac{1}{8}$ portion of the estate of the deceased husband equally.

The above portion of sharing inheritance is in accordance to the express provision of the Quran Allah says:

In that which your wives leave, your share is a half, if they leave no child. But if they leave a child, you get a fourth of that which they leave after payment of legacies that they may have bequeathed or debt. In that which you leave their (your wives) share is a fourth, if you leave no child. But if you leave a child, they get an eighth of that which you leave after payment of legacies that you may have bequeathed debts...¹¹.

Even where a woman is repudiated three times by her husband who is in his death sickness, she still inherits the husband if he dies in that sickness, but the husband himself cannot inherit her. Similarly, she can still inherit him, even if it was a single repudiation, if he happens to die from that illness, and even if she has completed her iddah period¹².

In the event of a person in good health repudiating his wife once, there shall be mutual inheritance between them should either of them die before she completed the period of iddah¹³.

3.3 Mutual Rights of the Spouses

i) Right to Sexual Intercourse

Marriage in Islam is intended to protect the chastity of men and women alike, therefore it is

¹¹ Qur'an 4 vs12

¹² Abdul Rahman D.op cit p. 301

¹³ Ibid

the woman's duty to respond to her husband's requests for conjugal relations. Being a major obligation upon the woman to fulfil her husband's desire, she should not give silly excuses and try to avoid it, refusing to do that is a major sin that deserves the angel's curse and Allah's wrath. There are several hadith that urge wife to respond to her husband's need as much as she is able, no matter how busy she may be, so long as there is no urgent or unavoidable reason not to do so¹⁴. Abu Hurayrah (RA) reported that Allah's Messenger (PBUH) said: If a man invites his wife to bed and she refuses to come and he sleeps while angry, the angels curse her till in the morning¹⁵.

In another report, Abu Hurayrah (RA) said that Allah's Messenger (PBUH) said: When a woman deserts her husband's bed at night, the angels curse her until the morning.

Also, Abu Hurayrah (RA) reported that Allah's messenger (PBUH) said: By the one in whose hand is my soul, never would a man invite his wife to his bed and she refuses but the one who is above the heavens would be angry with her until he (her husband) is pleased with her¹⁶.

Since the wife should be ready and willing to fulfil her husband's desire at all times, she is not allowed to fast voluntarily without his permission. The reason for this is that her "voluntary" fasting could interfere with her "obligatory" fulfilment of his desire.

Abu Hurayrah (R A) reported that Allah's Messenger (PBUH) said: a woman may not fast, while her husband is present, except with his permission-except for Ramadan; and she may not admit anyone into his house, while he is present, except with his permission; and

14 Muhammad A. H. op cit p. 173

15 Recorded by Bukhari, Muslim and others. In : Al-Jibaly M.op cit p. 79

16 Recorded by Muslim. In : Al-Jibaly M.op cit p. 80

whatever she spends from his earnings, without his permission, he will surely get half of the reward¹⁷.

The issue of protecting a man's chastity and keeping him away from temptation is more important than anything else that a woman can do, because Islam wants men and women alike to live in an environment which is entirely pure and free from any motive of *fitnah* or harm measures. The flame of sexual desire and thoughts or pursuing them through *haram* means can only be extinguished by means of discharging that natural energy in natural and lawful ways.

ii) Kindness and compassion

According to the provision of the Qur'an and the traditions of the prophet, spouses are enjoined to treat each other with kindness and promote good and honourable relationship towards each other. Both parties have duties to treat the others with kindness and also to respect each other. It is an obligation established through a divine command. Allah says in the Qur'an: Leave with them (your wives) in kindness; even if you dislike them, perhaps you dislike something in which Allah has placed much good¹⁸.

3.4 Rights of the Husband over his Wife

It is absolutely vital in Islamic marriage that the wife respect her husband otherwise the marriage is going to be a miserable business, since one of the basic rules of Islamic

¹⁷ Recorded by al-Bukhari, Vol 7 Hadith 123.

¹⁸ Qur'an 65 vs 6.

marriage is that the husband is the ‘Imam’ and the head of the household. Allah (SWT) says:

Men are in charge of women by (right of) what (qualities) Allah has given one over the other and what they spend (in support) from their wealth, so, righteous women are devoutly obedient (to Allah) guarding in (their husband’s) absence what Allah commands them to guard (their husband’s honour, property, secret etc). But those women from whom you fear defiance – first admonish them; then (if they persist), forsake them in bed; and (as a last resort) strike them. But if they obey you, seek no means against them, Allah is ever Exalted and Great¹⁹.

The above verse gives the man a major responsibility in running the family, and qualifies him for a number of rights, those rights are to be rendered to him by his wife. This is the ‘degree’ or ‘edge’ that Allah awarded to the man over the woman. Allah says: “And due to them (the wives) similar to what is expected of them, according to what is reasonable. But the men have a degree over them (in responsibility and authority) Allah is mighty and wise”²⁰.

The degree in the above verse is a degree of responsibility before being a degree of homage. The man earns it by being truly worthy of the trust that Allah (SWT) conferred on him, and loses it by neglecting that trust. Being the head of the household as Allah (SWT) has placed him to be so, he has to prove himself worthy of that position. It is not true that a Muslim wife is expected to obey her husband in every single thing that he says, if the husband attempts to order her to do anything that clashes with Islam, it is her duty not to obey him, but to point this out (gently and politely) and to change his order.

¹⁹ Qur’an 4 vs 34
²⁰ Al-Jibaly op cit p.62

3.4.1 The rights of husband and duties of wife towards her husband in Islam

- i) Obeying and respecting the husband.

The true Muslim woman is always obedient to her husband provided that no sin is involved. She is respectful towards him and is always eager to please him and make him happy. Obeying the husband is an obligation on the women in Islam, it is an act of worship that she presents to Allah (SWT) alone, only seeking his pleasure and acceptance. Abu Hurayrah reported that Allah's messenger (PBUH) said: When a woman prays her five (prayers), fasts her month (Ramadan) preserves her chastity and obeys her husband, she will be told (on the judgment day) to enter Janna from any of its (eight) gates²¹. On the other hand, disobeying the husband is a great sin that could cause the prayer to be unacceptable by Allah. Ibn Umar (RA) reported that Allah's messenger said: There are two individuals whose prayer does not rise above their heads: a slave running away from his masters-until he returns to them, and a woman who disobeys her husband-until she returns (to obedience)²². As part of a wife's obedience to her husband is to serve him to the best of her ability. That includes performing the daily chores, serving his food and so on. She does not complain about her housework because she remembers that many of the virtuous women in Islamic history set an example of patience, goodness and a positive attitude in serving and taking care of their homes despite the poverty and hardship they faced.

Asma bin Abi Bakr al-Siddiq served her husband al-Zubayr and took care of her husband's horse, feeding it and exercising it. She also repaired the water bucket, made bread and carried dates on her head from far away²³.

²¹Recorded by Ibn Hibban verified to be authentic by al-Albani (sahihul-jami no. 660 and Adab uz-zafaf p. 286 as reported. In: Al-Jibaly M.op cit p. 71

²²Recorded by al-Hakim and at-Tabarani verified to be authentic by al-Albani (Sahihul-jami no. 136).

²³Bukhari vol no 319 www.islamqa.info/en/1704 Accessed 15 Nov. 2011

No woman is exempted from this responsibility unless her husband elects to relieve her. Even a woman as noble as the Prophet's (PBUH) daughter found herself responsible for that. Ali (RA) reported that his wife Fatima (RA) went to the Prophet complaining about the bad effect of the stone hand- mill on her hand. She did not find Him, and left Him a message with A'isha (RA) asking Him to give her a maid from among the captives that he had recently received. When Aisha (RA) told him of his daughters need, He went to her house, entered, and found her and Ali in bed ready to sleep. Fatima started to rise but He (PBUH) told her to stay in bed. He sat between them and said: shall I not direct you to something better than what you have requested? When you go to bed, say "subhan Allah – exalted is Allah", thirty three times "Alhamdu lillah – all praise belongs to Allah", thirty three times, and Allahu Akbar – Allah is the Greatest", thirty four times. Indeed that is better for you than a servant²⁴. Asma bint Yazid Ansari came to the Prophet and said "O Prophet of Allah: You are dearer to me than my parents. The Muslim ladies have deputised me as their representative to talk to you on their behalf. Verily you are the Prophet of Allah for both men and women. We ladies stay for most part of our time within the four walls of our houses. We remained pinned to our jobs of fulfilling the sexual desires of man, bearing children for them and looking after their homes. Notwithstanding all this, man excels us in getting rewards for things which we are unable to do. They go and say their daily salat and weekly jumat in the masjid, visit the sick, attend the funerals, perform hajj and above all fight in the way of Allah. When they go for hajj or jihad we look after their property, bring up their children and weave cloth for them. Don't we share rewards with them?"

The Prophet addressing the sahabah (companions) sitting round him said: did you hear a

²⁴Bukhari book 8 vol75 hadith 330. Retrieved on 28 Feb. 2014 from <http://www.quranexplorer.com/Hadith/English/Hadith/bukhari/008.075.330.html>

lady asking a better question? Sahaba replied: “O Prophet of Allah! We never thought that a lady could ever put such a question”. The Prophet addressing Asma said: listen attentively and go and tell the ladies who have sent you that when a woman seeks the pleasure of her husband and carries out her domestic functions to his satisfaction, she gets the same reward as men get for all these services to Allah”. Asma returned very happily after getting this reply to her questions²⁵.

How can the Muslim women complain about taking care of her house and husband when she hears these words of prophetic guidance? She would fulfil her household duties and take care of her husband in a spirit of joy, because she is not carrying a tiresome burden, she is doing work in her home that she knows will bring reward from Allah (SWT)²⁶.

One of the most important ways in which a Muslim woman obeys her husband is by respecting his wishes with regards to the permissible pleasure of daily life, such as social visit, food, dress, speech etc. The more she responds to his wishes in such matters, the happier and more enjoyable the couple life becomes and the closer it is to the spirit and teaching of Islam. The Muslim wife does not forget that her obedience to her husband is one of the things that may lead her to paradise.

The following is reported to have been said by the Holy Prophet in this connection.

- 1) “A woman whose husband is pleased with her at the time of her death goes straight into paradise”.
- 2) “The salat of two persons hardly rise beyond their heads in its fight to heaven. These two persons are: a runaway slave and a disobedient wife”.
- 3) When a woman steps out of her house against the wishes of her husband, she is cursed

²⁵ Recorded by Buhari and Muslim. Retrieved on 28 Feb. 2014 from Chapter 10 Women’s Courage and Spirit for Islam Faza’il-e-A’maal <http://storiesofthesahabah.tumblr.com/post/36415451601/rewardofmuslimah>
²⁶ Muhammad A. H. op cit p. 170.

by every angel in the heaven and by everything other than man and jinn by which she passes, till she returns.

- 4) A woman whose husband is displeased with her, none of her prayers or good action reach heaven, till her husband is pacified.
- 5) Abu Hurayrah reported Allah's messenger as saying: when a woman who has been called to her husband bed refuses and he spend the night angry the angels curse her till the morning²⁷.

Muslim woman should bear in mind that obedience to her husband is an obedience to Allah (SWT) in the first place because He ordered it. However, the husband should only be obeyed in matters that do not involve disobeying Allah (SWT).

One may wonder, "what is so great about the husband that the woman is required to perform heroic acts to please him?" In answering this question the following principle need to be understood.

- 1) The right granted to the husband is necessary for peaceful and productive running of the family.
- 2) When the husband fulfils his responsibility towards his wife as outlined above, he becomes a true benefactor who deserves her full gratitude and support. Therefore the husband's right do not necessarily mean that he is better than the wife. He is of no higher status and better species. Both of them descend from Adam (ASW) and Adam was made from dirt. Piety and righteousness are what determines who is truly better than the other. His rights are set by Allah to guarantee well-being and success of their

²⁷ Transmitted by Bukhari and Muslim, Vol 7, No 122 Classification of Wedlock, (Nikah) The Alim, the worlds' most useful software.

relationship and their family. Even though the wife is normally subordinate to her husband in the family structure, she may be far better than him in Allah's sight, especially when she fulfils her obligations in a way that is pleasing to Allah (SWT).

ii) Right of Restricting her Movements

A Muslim woman does not go out of her house except with the permission of her husband.

In the hadith quoted earlier, the Prophet is reported to have said that where a woman steps out of her house against the wishes of her husband, she is cursed by every angel in the heaven and by everything other than by man and jinn by which she passes till she returns.

A Muslim woman must not be alone in a private place with a man who is neither her husband nor her *Sadaq*. Ibn Umar (RA) reported that Allah's Messenger (PBUH) said:

Let no man enter, after this day, to the privacy of a woman unless he has with him one or two other men. Ibn Abbas (RA) reported that Allah's Messenger (PBUH) said: A woman may not travel except with a *Sadaq*. And no (unrelated) man may come into her presence unless she has a *Sadaq* with her²⁸. A woman should not talk to other men without her husband's permission (whether explicit or implicit) and her talking with other men should be limited, formal and to the point. Amr Bin al-As (RA) reported that: "The prophet (PBUH) prohibited speaking to woman without their husband's permission". The married life is based on trust, in order to maintain her husband's and safeguard his honour, a woman must avoid all situations that may cause suspicion to him or other people²⁹.

iii) Breast-feeding the Children

A woman has the obligation of breastfeeding the children up to two complete years. Allah

28 Recorded by Bukhari, Muslim and others. In: Mohammed I. Who are the sinful women. Al Balagh publisher Lagos p. 19.

29 Al-Jibaly M. op cit p. 82

says: Mothers should nurse their children two complete years for whoever desires to complete the nursing term. A woman may not forsake this important obligation unless she has an Islamically accepted excuse, such as genuine medical problem. Women who deny their children their nursing rights are liable to punishment in the grave and in the hereafter. The Prophet (PBUH) is reported to have said that he saw women who denied their children breast milk in his dream as snakes were biting their breast³⁰.

She must not receive male strangers or accept gifts from them without his permission. The husband has the legal right to restrict her freedom of movement and prevent her from leaving her home without his permission. She must comply with this right unless there is a necessity or legitimate adequate for her to do otherwise. However, it is his religious obligation to be compassionate so as to relax his right to restrict her freedom of movement. If there arise a conflict between this right of his and the wife's parents' right to visit and be visited by their daughter, his right prevails. Yet it is religiously recommended that he be considerate enough to waive his right and avoid estrangement within his conjugal family or between any member of his family and close relatives³¹.

It is not permitted for a woman who believes in Allah (SWT) to allow anyone into her husband's house whom he dislikes; or to go out when he does not want her to or to obey anyone against him.

iv) Rights of Marrying another Wife

The wife may not legally object to the husband's right to take another wife or to exercise his right of divorce. The marital contract establishes her implicit consent to those rights.

30 Recorded by Ibn Khuzaymah (no 1986), ibn Hiban and others In: A l-Jibaly M. op cit p. 95

31 Abd al Ati H. op cit p. 173.

v) Right of Correction

Islamic law has given a husband the right to correct his wife's doings and behaviour whenever necessary³². A refractory wife has no legal right to object to the husband's exercise of his disciplining authority. Islamic Law, in common with most other systems of law, recognizes the husband's right to discipline his wife for disobedience. A Muslim woman should accept her husband's authority and should not violate his order. She should also teach children to respect his authority and ask them to get permission from their father in their affairs.

Allah (SWT) stated in the Qur'an that

“Men are the maintainers of women because Allah has made some of them to excel others and because they spend out of their money; the good women are therefore obedient”³³.

3.5 Other kinds of obligation of wife towards her husband

Other kinds of obligation of wife towards her husband include:

(1) Showing Gratitude and Appreciation

Muslim woman should show gratitude and appreciation whenever her husband does anything good for her. Gratitude and appreciation are admirable characteristics in a person and it is the secret by which one may attract charitable acts³⁴. Even Allah has mentioned that gratitude for his blessings are conditional on the continual perpetuation of His grace upon mankind. The Qur'an says:

“And remember your Lord caused to be declared (publicly): If ye are grateful, I will add more (favours) unto you; but if ye show ingratitude, truly my punishment is terrible indeed”³⁵.

32Gurin A.M. op cit p. 134

33 Qur'an 4 vs 34.

34Abubakar A. S. Husband-wife relationship, the Right of the Husband 2002, p. 39.

35 Qur'an 14 vs 7

The husband normally has many favors upon his wife. Those favours are not limited to financial privilege. A woman should show gratitude to her husband, and should return his favors in the form of kindness and good treatment. A great example is Khadijah (RA) who was wealthier than the Prophet (PBUH). Her financial advantage though did not make her arrogant or ungrateful to her husband. Rather, she was a great example of modesty and kindness that the Prophet (PBUH) continued to remember all his life. A woman who is reluctant to admit her husband's favors displeases her Lord even before she displeases her husband³⁶. Abdullah Bin Amr (RA) reported that Allah's Messenger (PBUH) said: "Allah does not look (with mercy) at a woman who is not grateful to her husband when she cannot live without him"³⁷.

Abdullah Bin Umar, Abu Hurayrah, and Abu Said al-Khudri (RA) reported that Allah's Messenger (PBUH) said to the woman: O woman! Give charity and ask for Allah's forgiveness abundantly, for I have seen you (women) to be the majority of the people of hell fire (that is because) you frequently curse, and you are ungrateful to your husbands. I have not seen ones with incomplete intellect, and religion who are more overpowering to a man of reason than you are. As for incomplete intellect, it is that two women's testimonies equate one man's. And as for incomplete religion, it is that she stays for a number of days without prayer, and she breaks her fast during Ramadan³⁸.

vi) She Keeps his Secrets

The chaste Muslim woman does not disclose her husband's secrets, and does not talk to anyone about whatever secret and other matters there may be between him and her.

36 Al-Jibaly M. op cit p. 66.

37 Recorded by an-Nasai and others, verified to be authentic by al-Albani (as-sahihah No. 289). In : Al-Jibaly M. op cit p. 66

38 Recorded by al-Bukhari, Muslim and others. In: Mohammed I. Who are the sinful women. Al Balagh publisher Lagos p. 21

Talking about that which is private between a husband and wife is one of the most abhorrent ways of disclosing secrets. No one does such a thing but the worst type of people. Keeping secrets itself is a worthy and virtuous deed, whilst disclosing them is a serious error and shortcoming.

vii) She Stands by Him and offers her Advice

One of the laws that Allah (SWT) has decreed for this life is that men and women should work together to cultivate and populate the earth and run the affairs of life therein. Man cannot do without woman, and vice versa. Hence, the laws of Islam teach men and women to cooperate in all matters. Islam encourages man to help his wife, as much as he is able; the Prophet (PBUH) who is the example for all Muslims, used to help and serve his family until he went out to pray, as the mother of believers Aisha said:

Just as Islam expects a man to help his wife with housework and running household affairs, so the woman is also expected to help him in dealing with the outside world and to play her role in life by offering her opinions and advice, and supporting him in practical terms.

History has recorded many names of great Muslims men who used to seek and follow the advice of their wives, foremost among them is Prophet himself (PBUH), who sometimes followed the advice of Khadijah, Umm Salamah, Aisha and others among his wives, Abdullah Ibn Zubayr used to follow the advice of his mother Amsa, Abd al-Aziz Ibn Marwan and harun al-Rashid used to follow the advice of his wife Zubaydah and there are many other such examples in the history of Islam³⁹.

The true sincere Muslim woman understands the heavy burden that Islam has placed on her shoulders by obliging her to be a good wife to her husband, to surround him with care and

39 Muhammad A. H. op cit p. 194

meet his every need, to give him enjoyment and to renew his energy so that he may fulfil his mission in life. So she does not withhold her advice when she sees that he needs it, and she never hesitate to stand by his side; encouraging him, supporting him and offering advice and consolation.

viii) To make herself beautiful for her husband.

She makes herself beautiful for her husband by means of make-up, clothing, etc so that she will appear more beautiful and attractive, and thus make her husband happy. This was the practice of the righteous women of the Salaf, who used to devote their time to worshipping Allah and reading Qur'an. Foremost among them were Aisha (RA) and others; they used to wear fine clothes and jewellery at home and when they were travelling in order to make themselves look beautiful for their husbands⁴⁰.

Bakrah bint Uqbah came to Aisha (RA) and asked her about henna. Aisha said "it comes from a good tree and pure water". She asked her about removing body hair, and she said, "if you have husband, and you could remove your eyes and replace them with something better, then do it"⁴¹. Those women who are failing to make themselves beautiful for their husbands are sinners, because they are falling short in one of the greatest duties of marriage. Their negligence may be the cause of their husband's keeping away from them and looking at other women⁴².

It is one of the teachings of Islam that a woman should make herself look beautiful for her husband, so that her husband should only see of her that which he likes. So it is forbidden for a woman to dress in mourning for more than three days, except in the case of her husband's death, when is permitted to mourn for four months and ten days. The proof of

40 Muhammad A. H. op cit p. 203

41 Ibn al-Jawz, Ahkam al-Nisa 143 In: Muhammad A. H. op cit p. 203.

42 Ibid

this is in the Hadith narrated by Bukhari from Zaynab the daughter of Umm Salama, who said, “I came to Zaynab bint Jahsh, the wife of the Prophet (PBUH) when her brother died. She called for perfume and applied it to herself, then said, “I am not wearing perfume because I need to, but because I heard the Messenger of Allah (PBUH) say from the minbar: “It is not permitted for a woman who believes in Allah (SWT) and the Last Day to grieve for more than three days, except for her husband (for whom she may grieve) four months and ten days”⁴³.

ix) She is Tolerant and Forgiving

The Muslim wife is tolerant and forgiving, overlooking any error on the part of her husband. She does not bear a grudge against him for such errors or remind him of them so often. There is no quality that will endear her to her husband like the quality of tolerance and forgiveness, and there is nothing that will turn her husband against her like resentment, counting faults and reminding him about his mistakes⁴⁴. As the Qur'an says:

“Let them forgive and overlook, do you not wish that Allah should forgive you?”⁴⁵.

Every Muslim woman should seek to attain the qualities of a good wife by obeying Allah and His Messenger (PBUH) a path that surely leads to paradise. Also by implementing these qualities, her marriage will be full of happiness. The best advice to every Muslim woman is to avoid the ways of the unbelievers who do not build their family on religion but on their desires. They ignore the basic differences between man and woman and treat them as equal in every regard⁴⁶. Allah will bless the marriage in which both the husband and the wife obey Him and fulfil their obligation toward each other.

43 Fath Al Bari 9/484, Kitab al-talaq, bab ihdad al- mutawafa amha zawjuha. In Muhammad A. H. op cit p. 204

44 Muhammad A.H. op cit p. 208

45 Qur'an 24:22

46 Al-JibalyM. op cit p.95.

CHAPTER FOUR

RIGHTS OF THE WIFE IN MARRIAGE UNDER ISLAMIC LAW

4.1 Introduction

Islam gives rights and recognition which are envied by Western women when they hear about women's rights in Islam. Before the advent of Islam, the status of women throughout much of the world was appalling. In many places, women had no rights at all; they were treated worse than animals, and had no say in anything whatsoever¹.

A woman's proper place was considered to be in the home or working in the fields and at other menial duties with no regard for her identity or concern for her feelings. In some parts of the world men doubted whether women even have souls or could be regarded as human beings. In the fifth and seventh century CE Conference were held to debate these questions in the West. Women were considered a tradable commodity. She was believed to be a filthy being from the making of *Shaitan*, that nothing of the woman was largely present even in Jewish and Christian text and scripture².

4.2 Women before Islam

In ancient Greece, a woman was primarily regarded as one of the greatest source of disruption on the earth. The Chinese scripture viewed women as the subordinate of men, with no rights at all. In the Hindu culture, women were regarded as harmful creatures. For example professor Indra in her book the status of women in the Mahabarata, writes "There is no creature more sinful than woman, woman is burning fire, she is the sharp edge of a razor"³. Hatimy says "An Indian wife used to call her husband, "my Lord" or "my god" as

1 Sajada N. Feminism and Muslim women, Ta-Ha Publisher Ltd 1 Wyne Road London p.9

2 Ibid p.9

3 Indra, status of women in maharabata (quoted in Hatimy). In: Sajda N. op cit p. 9

he was regarded to her earthly god. She never ate with him. She had to follow in a few yards behind him when they walk together. She was to worship her husband”⁴.

In Arabia, female infanticide was not unknown. In jahiliyya, she was considered part of her father’s or her husband’s property(estate). The Arabs regarded the birth of a baby girl a bad omen, and would also get rid of her by burning her alive⁵. In general, a daughter born into Arab family face one of the two fates: either she would be brought up as a subordinate within her own family or she would be buried alive, in the hope that the shame and embarrassment would be buried with her. The birth of a daughter was often regarded as an ill omen; in contrast, the birth of a boy was welcome with happiness and rejoicing.

Daughter were unwelcome because Arabian families believed that they were a liability; women were generally believed as being unable to participate in the political and economic spheres, and as being of no use in time of war because of their supposed weakness⁶. The ancient Arabs were not alone in committing such inhuman acts, such practices were common in china and Japan as well⁷. Female infanticide was also known in India, where females were regarded as an economic burden because the parents were expected to provide their daughter with a dowry at the time of marriage. Indian women were not even allowed to touch an idol, that idol would be destroyed. Even worse than this was the situation in Japan, where women were not even regarded as being capable of worshipping or taking part in any of the religious activities⁸.

⁴Hatimy In: Sajda N. op cit p. 10.

⁵ Al-JibalyM.op cit p. 25.

⁶ Sajda N. opcit p. 10

⁷ Ibid

⁸ Ibid

Throughout the western world, the situation was a bit better, women were not regarded as human beings. Women's place was in the home, and her only purpose in life was to bear children. Women had no identity of their own, and could not make a will or draw up a contract; they were completely dependent upon their husbands or other men in their household. This oppression continued for centuries⁹. Khan says: "In England over nine million were burned alive in the sixteenth century. Only in 1850 was she considered a citizen and 1882 able to own property. In France they were still debating whether women were human beings and included that they were, but created to serve man, only in 1938 was the law amended to allow women to deal in property and operate a bank account"¹⁰.

4.3 Women under Islamic Law

The women status and rights are only established in Allah's fair guidance, which was brought by his messengers through ages after the alteration and obliteration of all the previous messages. Islam came to crown all of those messages with a most perfect guidance from Allah, leaving no detail untouched, and re-establishing the right position for the women. She is not a lesser being that they may humiliate at convenience. Rather she is his counterpart. Men and women are equal in terms of their relationship to Allah. Islam is divine guidance revealed by Allah, and it is Allah who create the true essence of 'women'. He creates men and women differently so they may fulfill different purpose in life. A Muslim's ultimate goal in life is to please Allah. And the fundamental pre-condition for whoever wishes to please Allah is that they must follow Islamic law as it has been prescribed.

⁹ Sajda N. op cit p. 10-11

¹⁰ Khan, women in Islam 1994. In: Sajda N. op cit p. 11.

Men and women are created differently in order to fulfill different roles in life, Muslims considered this to be a blessing. It is not the question of superiority of one sex over another, rather it is matter of role differentiating men and women complement one another, and both are equally indispensable. The Islamic teachings regarding the spiritual equality of male and female before Allah is explicit, Allah(SWT)says; “whoever does right whether male or female and is a believer verily we shall quicken with good life and we shall pay them a recompense in proportion to the best of what they used to do”¹¹. He also says in another verse that makes no difference between male and female that “the noblest of you in the sight of Allah are the best in conduct”¹².

Piety of character as opposed to being male or female is constantly emphasized. Numerous references in the Quran and hadith clearly illustrate the spiritual equality of men and women and their complimentary. The phrase “believing men and women” is used often in the Quran. This should eliminate the notion that any essential inequality is prescribed by the Sharia. Inequality may be practice in some parts of the Muslim world, but it represents cultural norms which are applied wrongly in the name of religion. In many cultures, it is generally assumed that man naturally possess more piety, wisdom and intelligence than women. So far as Islamic teachings are concerned, Allah speaks highly in the Quran of those who live their lives according to Islamic law making no distinction in this regard between male or female¹³. Women play a most important role in Islam. One Surah in the Quran is entitled ‘an-Nisa’ ‘women’. Another surah is named after Maryam (Maryam the mother of Isah Jesus (ASW) a woman who is deeply respected by all Muslims).

11 Qur’an 16 vs 97.

12 Qur’an 49 vs 13.

13 Sajda N. opcit p. 18.

Furthermore, there are many hadith narrated from the Prophet (PBUH) in which he speaks of women with utmost respect. He clearly regarded them as one of the most precious in the world.

Allah and His Prophet put an end to the practice of female infanticide and commanded the girls be brought up and treated with kindness. The Prophet himself was a fine example of this gentle upbringing of daughters. He loved his daughter Fatima (RA) and his other daughters very much. Conscious Muslim women are proud of the rights granted them by Allah (SWT). They feel honoured that the Almighty and His beloved prophet Muhammad (PBUH) have bestowed this rights upon them, when where else in the world they are regarded as nonentities and “doors to hell”.

4.4 The right to Education

The Muslim woman has a right to education, as the search for knowledge is enjoined on both men and women as a religious duty. This is very important because without knowledge, the act of worship is deficient and likewise the ability to contribute to family and societal development. Parents are responsible for their children's education. The husband is supposed to teach his wife or provide for her to be taught¹⁴.

4.5 The Wife's Financial and Non financial Rights in Islam

Muslim scholars generally divide the right of a wife into two categories: financial and non financial. The financial right basically concerns the maintenance of the wife, while the non financial right concern fair treatment of the wife. The wife's right over her husband are clearly ordered and strongly established in Islam. Allah's messenger (PBUH) is reported to

¹⁴ Yusuf B. op cit p. 6

have said: Lo! You have right on your women and your wife has right upon you, your right on them is that they should not allow to seat on your furniture anyone whom you dislike, nor allow in to your houses, any one whom you dislike. Lo! And their rights upon you is that you be good to them in terms of their clothing and food¹⁵. Aisha, Anas and Ummy Sullaym (RA) reported that the prophet (PBUH) said:“Indeed, ‘the women are only the full sisters of men’”¹⁶.

Fulfilling the wife’s right is an indication of *taqwa*, revering Allah and fearing his punishment. It is a trust between the man and his Lord. He will also be questioned about that trust. Jabir reported that Allah’s messenger (PBUH) said “have *taqwa* of Allah in regard to women, indeed you took them (in marriage) through a trust with Allah, and have access to their private parts by Allah’s word (permission). They have a right on you that you provide them with food and clothing in a fitting manner¹⁷. The woman has right and obligations. Her right must be fulfilled in serious and fair manner: this is an important requirement in Islam; neglecting it constitutes a clear act of disobedience and threatens the well being of the family and Muslim society¹⁸. Muslim scholars generally divide the right of wife’s into two categories; financial and non financial rights. The financial right basically concern with the maintenance of the wife, while non financial right concern other treatment of the wife.

4.5.1 Non financial right of the wife

i) Kind treatment and compassion

The wife have the right to be respected and treated kindly, this is not an optional favor from

14 Yusuf B. Ibid

15 Recorded by At-trimidhi, an Masal and ibn Majah in al-Bukhari Book 48 Hadith 829.

16 Recorded by Ahmad, Abu Dawud and others. In: Mohammed I. Who are the sinful women. Al Balagh publisher Lagos p. 25.

17 Recorded by Muslim and Abu Dawud, Book 62 Hadith 127.

18 Al-Jibaly M. opcit p. 28.

her husband it is an obligation established through the divine command. What a man cannot control (the heart inclination) must not affect the way he treat his wife. Allah says in the Qur'an that:

“Live with them (your wives) in kindness; even if you dislike them, perhaps you dislike something in which Allah has place much good”¹⁹.

Rendering kindness is a sign of good Nature and righteousness. The prophet (PBUH) gave the perfect example of how a believer should treat his wife. Aisha (RA) reported that Allah's messenger said:

“The best of you are those who are best to his family, and I am the best of you towards my family”²⁰. Abu Hurayrah Ibn Abbas and others (RA) reported that Allah's messenger (PBUH) said: “The best among you are those who are best to their women (or family)”²¹. Abu Hurayrah (RA) reported that Allah's messenger (PBUH) said: “The believers who are most complete in faith are those of best manners; and the best among them are those who are best (in treatment) to their women”²².

ii) To respect the wife.

A woman is proud of herself just the same as a man would be. She likes to be respected by others, she would get hurt if she is belittled. She feels good when respected and would hate anyone who tries to degrade her.

A wife expected her husband to respect her more than others, honouring the wife by the husband would not belittle the husband, but would only prove his affection towards her.

19 Qur'an 65 vs 6

20 Recorded by al-Tirmidhi, Ibn Hibban and others. Hadith 955. The Alim, the worlds' most useful software.

21 Recorded by Ahmad, at-Tirmidhi and others. Hadith 955. The Alim, the worlds' most useful software.

22 Recorded by at-Tirmidhi and Ibn Hibban, Book 73 Hadith 6.

Therefore the husband should respect her more than others and talk to her politely. It is wrong for the husband to shout at the wife or insult and humiliate her. Also husband should not abuse his wife jokingly or tease her.

iii) Fairness and Justice

It is an obligation on the husband, being the chief of the family, to treat his wife and family with fairness and justice. Failing to do so is an indication of his failure in running the family²³.

The husband should not use his material or physical superiority to oppress his wife. Oppression is a great sin that deserves Allah's wrath and brings about his punishment in both lives. Jabir Bin Abdillahi and Abdullahi, Bin Umar (RA) reported that Allah's messenger (PBUH) said: "Avoid oppression, because oppression will result in deep darkness on the day of resurrection"²⁴.

The two spouses should be fair and just in dealing with each other. The husband should avoid oppressing his wife in any way. He should not take unfair advantages of her it has been prohibited by Allah even upon Himself. The prophet (PBUH) is reported to have said that: "Allah says "O my servants: I have indeed prohibited injustice upon myself and made it prohibited among you, so do not oppress one another"²⁵. The husband should not let the feelings of superiority and dominance creep into his heart causing him to oppress his wife, let him ponder over the above verse of the Quran and the hadith of the Prophet. And oppression is never forgotten and will never go unpunished.

²³ Al-Jibaly M.opcit p.47.

²⁴ Recorded by Muslim and others. In: Al-Jibaly M.op cit p. 14

²⁵ Recorded by Muslim Book 43 Hadith 269

iv) Safeguard her Secrets

It is greatly prohibited for a man to expose his wife's secret, especially in matters of privacy that no one would normally know except the husband.

The Prophet of Allah says: "Indeed among the people who will have the most grievous position before Allah on the day of resurrection is a man who, after he privately approaches his wife and she privately approaches him, he exposes her secrets"²⁶.

v) The Right to Retain Identity

The Muslim woman is recognized as a person in her own right who can enter into a legally binding contract. She retains her identity on marriage and retains her father's name. Role models in Islamic history such as Aisha bint Abubakar, the Prophet's wife and Nana Asmau and the daughter of Sheikh Usman Dan Fodio retained their fathers' names)²⁷.

4.5.2 Financial Rights

i) Right to Dower (*Sadaq*)

Sadaq is a required marriage gift given by the groom to the bride. It is obligatory and makes a component of the marriage contract. It also represents the groom's commitment to take care of all the family expenses including those for personal needs²⁸. Allah says in the Qur'an²⁹: "And give women (on marriage) their dowry as pure gift". *Sadaq* is the sole right of

²⁶ Recorded by Muslim Abu Dawud and others. In: Al-Jibaly M. op cit p.30.

²⁷ Jawahir ul-ikhil vol.1 p. 248-249.

²⁸ Monzer. kahf op cit p20

²⁹ Qur'an 4 vs4

the wife and no one may take any of it without her permission- not even her parents³⁰. In Islam, the *Sadaq* is paid to the bride, not to her parent. The prophet(SAW) paid *Sadaq* for all his women and accepted *Sadaq* on his daughters. Even though all the jurists agreed that *Sadaq* is essential, they differ on whether it is a condition for validity of marriage or not³¹. Hanafi, Hambali, and Shafii jurists say that if the parties at the time of making the contract agree that there will be no *Sadaq* or something unlawful is given as *Sadaq*, they agree that the marriage is valid and the woman is entitled to her *Sadaq*, even after the marriage is consummated.

The minimum of *Sadaq*: The jurists differ on the minimum of *Sadaq*, Shafii, and Ahmad ibn Hambali and other jurists say that there is no minimum to *Sadaq*. Maliki says it is one quarter of a dinar which is three dirham. Hanafi say it is ten dirham. Those who say there is no minimum are the majority.

Sadaq under Islamic law signifies the property due to the wife from the husband as an obligation imposed on him as a mark of respect to the wife³².

Sadaq (Dower) has been mentioned in the Quran, as an essential part of a Muslim marriage. It is given by the bridegroom to his bride in accordance with their mutual agreement³³.

It may be of any value from a quarter of dinar to a thousand dinar or more. *Sadaq* is not like the Africa custom of giving bride-price, since marriage in Islam is not a contract of sale of the girl to the husband³⁴. It also differs from the old European system of dowry in which the

30 Al-Jibaly M. op cit p. 72

31 Aliyu I.A op cit p. 212

32 Gurin A.M. op cit p. 86.

33 Abdul Rahman D. op cit p. 158

34 Ibid

father used to give his daughter a heavy dowry at the time of her marriage which becomes the property of the husband, as if it was inducement for him to marry the girl. The same is the practice among the Christians and Hindus in Kerala and other parts of India. The fathers are required to pay a very heavy dowry to find suitable husbands for their daughters. In the Jehiliyya society of the Arabs, *Sadaq* was considered as the property of the guardian of a girl. The amount of dowry varies according to the educational qualifications, professional standing, wealth and social status of the boy. The same is also in practice in Ibo and Yoruba land in Nigeria, where the dowry is shared among the family of the girl³⁵.

In Islam, on the other hand, *Sadaq* is a marriage gift from the bridegroom to his bride and becomes her exclusive property. Islam has elevated the status of women as *Sadaq* is given as a mark of respect for her³⁶. Even if marriage ends in divorce, the dowry remains the wife's property and the husband has no right to take it back, except in the case of "khul" where the divorce takes place at the request of the wife in consideration of the return of the whole or part of the *Sadaq*, paid to her³⁷.

In other words, *Sadaq* is a sum of money or other property promised by the husband to be paid or delivered to the wife in consideration of the marriage³⁸.

The other word generally used for *Sadaq* in the holy Quran is *ajr* meaning reward, and a gift that is given to the bride. In fact *ajr* is that in which there is gain but there is no loss. The word *Sadaq* is also used in the holy Qur'an to signify nuptial gift. Another word that is used in holy Quran to indicate the nuptial gift is "faridah", literally means what has been

35 Abdul Rahman D. op cit p. 158

36 Sayyid S., Figh op cit. 7 p. 58.

37 Ibid

38 Ibid

made obligatory or an appointed portion. The word *Sadaq* is also used in hadith to signify dowry, or the nuptial gift. According to the holy Quran, the *Sadaq* is given as a free gift by the husband to the wife at the time of contracting the marriage³⁹.

The settling of a dowry on the woman at the time of marriage is obligatory. The Quran says: “and give them the woman that you marry” their compensation as an obligation”⁴⁰. It would appear from the above that the holy Quran endures the payment of *Sadaq* necessary for a valid marriage. The hadith of the prophet also leads to the same conclusion. To show the important of *Sadaq* in marriage sayyidina umar bin Khatab, the second caliph, have decreed that if a wife results the whole of her *Sadaq* or a part of it but later on demands it, the husband shall be compelled to pay it because, the very fact that she demands it is a clear proof that she did not remit it of her own free will⁴¹. *Sadaq* is mandatory, there is a consensus on this (among the scholars) and there is no difference in its regard.

The payment of *Sadaq* is necessary even though it might be a very small sum⁴². In exceptional cases marriage is legal though the amount of *Sadaq*, has not been specified, but it is obligatory and must be paid afterwards. The amount of dowry in this case would depend upon the circumstances of the husband and the position of the wife. The holy Quran makes this clear by requiring the provision for the wife to depend upon the circumstance of the husband, “the wealthy according to his means and the strengthened in circumstance according to his means”⁴³. Thus even if the dowry has not been specified at the time of marriage, it is to be determined and paid afterwards, and if it remains unpaid in the

39 Ibid

40 Qura'an 4 vs 24

41 AbdulRahman D. opcit p 159.

42 Bukhari ch. 678 hadith 51 and 52

43 Quran 2 vs 236

husband's life time, it is a charge on his property after his death. The word of the holy Qu'ran requires that it may be determined or paid afterwards. The Malik School follows this rule and renders the payment necessary at marriage, while the Hanafi School treats it more or less as debt⁴⁴.

Postponing the *Sadaq* is, in general an innovated inconvenience that departs from the normal practice in the Sunnah. It defeats the very purpose of *Sadaq*. Which is to be a gift given to the bride prior to having any intimacy with her? It also burdens the husband with a large amount of money that he must pledge as a postponed debt to an indefinite term.

Things that can be given as *Sadaq*: What can be given as *Sadaq* must be useful and it must be a clean object, its content or value must be certain, It can be movable or immovable property. It can even be in form of a service rendered to the bride⁴⁵. The object given in *Sadaq* must be pure, useful, capable of ascertainment and capable of delivery. A *Sadaq* may consist of money, camels, piece of land etc. *Sadaq* must not consist of an illegal object such as wine, port etc. where something illegal is given as *Sadaq*, such *Sadaq* is invalid. The jurists differ in their opinion as whether the giving of an illegal object as *Sadaq* affects the validity of marriage. According to the Malik, if something illegal is given as *Sadaq*, the marriage is invalid. But where the marriage is already consummated the woman will be given a proper *Sadaq*. The Hanafi, Hambali and Shafii are of the opinion that an illegal *Sadaq* does not invalidate marriage.

Generally speaking, the law does not fix any limit to the maximum of *Sadaq* that is payable to the bride, because people differ in their financial circumstances and means⁴⁶.

44Abdul Rahman D.opcit p.160

45 Abd al Ati H.opcit p. 62

46Gurin A.M.opcit p. 92

Although Islam does not set an upper limit for dower, but it is recommended to make it light and easy on the husband, a burdening *Sadaq* could be a bad omen of miserable and non compassionate marriage⁴⁷.

In many Muslim countries, the woman's parent request extremely high *Sadaq*, that has led many young men to forsake marriage or postpone it for a number of years, which had in turn led to the spread of *Zina* and other sins among the youth. Thus the parents should be considerate and realize that demanding too much from the husband brings harm to their daughters and the whole Muslim community⁴⁸.

Ugbah Bein Amr reported that Allah's messenger (PBUH) said: "The best of marriages (or dowries) are the easiest⁴⁹.

A *Sadaq* that is light upon the husband is a sign of blessing for the bride⁵⁰. (Aisha may Allah be pleased with her) reported that the messenger of Allah (PBUH) said: Verify, a sign of blessing for a woman is that her engagement, *Sadaq* and womb (i.e. giving birth) are all made easy⁵¹.

Categories of *Sadaq*: According to Islamic law, *Sadaq* is payable whether it has been fixed and agreed upon or not, or even where the contract has been entered into with a clear condition that there should be no payment of *Sadaq*. This is not permissible under Islamic law. *Sadaq* is obligatory and the husband must pay. For this reason, *Sadaq* has been divided into two categories, namely specified (*mu'ajjal*) or unspecified (*muwajjal*).

47 Al-jibaly M.opcit p. 74

48 Ibid

49 Recorded by Abu Dawud, Ibn Majah and others. Unified to be authentic by Al-Albani" (sahil ut-jami no 3279, 3300).

50 Al-jibaly M.opcit p. 75

51 Recorded by Ahmad, Al-Hakim and others. Verified to be Hassan by al-abani (sahihude jami no 2235)

Specified *Sadaq*: This is the *Sadaq* expressed and agreed upon by the parties before or at the time of concluding the marriage or after the marriage contract⁵². If the groom is minor, his father or guardian may settle the amount of dowry on behalf of the minor, and the amount has been specified, the husband will be compelled to pay the whole of it, however excessive it may seem to the court having regard to the husband's means⁵³.

Unspecified *Sadaq* if the marriage contract is executed without specifying the *Sadaq*, that does not forfeit the wife's right to it⁵⁴. The obligation to pay *Sadaq* is a legal responsibility on the part of the husband and is not dependent upon any contract between the parties. Once, there is a marriage, then there is a *Sadaq* for the wife. In case where dowry has not been fixed, either before or at the time of the contract, or after the contract, it is fixed with reference to the social position of her father's family and her own personal qualifications. The social position of the husband and his means are of little account. This should be done by taking into consideration the amount of dower paid to her sister and paternal aunts⁵⁵.

Uqumah reported that some people came to Abdullah Bin Mas'ud and asked him about a case where one of them married a woman without receiving a *Sadaq* for her and he died without consummating the marriage, Abdullah said: "Since departed from Allah's messenger (PBUH) I have not been asked a harder question. Go ask someone else". They kept trying to get answer from him for one month, at the end of which they said, "Whom would we ask if we do not ask you and you are one of the most esteemed of Muhammad's companions in this land, and we cannot find anyone else". He said "I will try to give you my best opinion in her regard. If it is right, that would be from Allah alone who has no

52Aliyu I.A.opcit p. 74

53 Gurin A.M.opcit p 92

54Al-Jibaly M. opcit p. 76

55Aliyu I. A. opcit p. 218

partner. and if it is wrong, that would be from me and from Satan, and Allah and His messengers would be clear from it” then he said: she would be given a *Sadaq* similar to that of other women of her family (or social status), without increase or reduction and she should accomplish the Iddah (of four months and ten days) and she should be given her share of inheritance.

Some individuals from the tribes of Ashja were then present, and one of them called Ma'all Bin Sinan al-Ashja stood and said: I testify that your judgment is similar to what Allah's messenger (PBUH) judged in regard to a woman of ours called Bau Bint washi¹. Since embracing Islam Abdullah Bin Mas'ud was never seen as pleased as he was when he heard that”⁵⁶. Thus, from the time of the marriage, a woman was not assigned a *Sadaq*, or if her *Sadaq* was too small compared to her husband's situation and the *Sadaq* that are usually given to other woman of her status, that does not forfeit her right to a fair *Sadaq*. She may then dispute that with Islamic authorities.

Under Islamic law, there is no community of goods between husband and wife. She is the absolute owner of her own property and of what she received from her husband as *Sadaq*. The terms of the settlement have been omitted, they may settle it subsequently. The terms of the contract may be varied at any time during the continuance of the marriage by mutual consent. The husband may at any time after the marriage increase the dower⁵⁷. Likewise, the wife has a right either to remit the whole dower or part of it in her husband's favour. Where the husband increase the dower, it is valid in the view of Hanafi law and enforceable where the marriage has been consummated or with the death of the husband. But if he

⁵⁶ Recorded by Abu dawud and An-Nasai and others, verified to be authentic by al-albanu Cirwa al-Ghalil.

⁵⁷ Gurin A. M. op cit p. 101

divorced her before consummation, she is only entitled to half of the fixed *Sadaq*, but not of the increase⁵⁸. According to the Malik jurist, upon consummation of the marriage, effect will be given to the increase portion and if divorce takes place before consummation she is entitled to the half of the originally stipulated *Sadaq* together with half of the increased portion. But where the husband dies before consummation and before she takes delivery of it, she is only entitled to dower originally stipulated, the increased portion lapses as an ordinary gift and therefore the rule of ordinary gift applies. If she has taken possession, it is effective and if she has not, it lapses⁵⁹.

Enforcement of *Sadaq*: The claim of the wife or widow for the unpaid portion of *Sadaq* is an unsecured debt due to the wife from her husband or his estate. It runs relatedly with unsecured debts and it is an actionable claim⁶⁰. If she predeceased the husband, the heirs of the wife, including the husband become entitled to the dower if she is a Muslim. If a husband refuses to pay prompt dower, the guardian of a minor wife has the right to refuse to allow her to be sent to the husband's house. Similarly, the wife may refuse the husband his conjugal rights, provided no consummation has taken place⁶¹. The wife is under Islamic law entitled to refuse herself to the husband until the prompt dower is paid; and if in such circumstances she happen to reside apart from him, the husband is bound to maintain her. This right of refusing herself is, however last on consummation. The non-payment or deferment of *Sadaq* by its very nature cannot confer any such right of refusal on the wife. The right to enforce payment arises only on death, divorce or the happening of a specific event⁶².

58 Gurin A. M. op cit p. 101

59 Ibid

60 Ibid

61 Ibid

62 Ibid

Entitlement to *Sadaq*:The wife is entitled to the whole of the fixed *Sadaq* under the following circumstances:

- 1) Where the marriage is consummated. This in accordance to⁶³ “and how could you take it(back)while you have gone in unto each other, and they have taken from you a firm and strong covenant”. According to the words of Allah it is wrong to take back any part of the *Sadaq* after the consummation of the marriage and that it is a sin to do that.
- 2) If either of the parties dies before consummation of the marriage, the Hanafi and the Hambali jurists say that “*khalwa*”(seclusion in a conducive atmosphere) is sufficient even if intercourse did not take place and that the woman is still entitled to her *Sadaq*. They supported their view with the hadith of the Prophet (PBUH) that “He who uncovers the veil of his wife and looks at her *Sadaq* becomes binding on him whether or not he consummated the marriage” The shafii and Maliki jurists say that if it is only “*khalwa*” and there is divorce before the actual intercourse, she deserves only half of the fixed *Sadaq*, and if the *Sadaq* is not fixed she is only entitled to a gift. They support their view with⁶⁴,where Allah says: “And if you divorce them before you have touch them , and you have appointed unto them the *Sadaq*, then pay half of that unless they have agree to forgo it, or he, in whose hand is the marriage tie, agrees to forgo and give her full appointed mahar.....”.
- 3) Where the wife lives with her husband for a complete year provided the husband have attained the age of puberty capable of having a sexual intercourse, she deserves her whole fixed *Sadaq*⁶⁵.

63Qur'an 4 vs 21

64 Qur'an 2 vs 237

65Aliyu I.A opcit p. 230

4) All the jurists agree that where a woman is divorced before the consummation of marriage, she is entitled to half of the fixed *Sadaq*⁶⁶.

5) Where there is separation before the consummation of the marriage and separation comes as result of the woman's fault, for example if she apostate, she is entitled to nothing.

ii) Economic Rights

The right to own property: Women in Islam have the right to own property and othermoveable or immoveable assets. The Muslim woman has the right to undertake economic activities. The Prophet's (SAW)first wife Khadijah was a wealthy business woman. Madina also had Muslim womenmerchants. Among them is Quaillah Umm Bani Atmara⁶⁷.

iii) Right to Maintenance

A wife is entitled to the right to maintenance under Islamic law; these rights include the right to lodge or shelter, feeding, clothing and other care irrespective of the social status of the wife. The obligation of the husband to maintain his wife is compulsory and not negotiable. The responsibility of the husband to maintain his wife is acknowledged by the

Qur'an and many traditions of the prophet. Allah says in the Qur'an.

“Let a man of wealth spend from his wealth; and as for him whose provision is restricted – let him spend from what Allah has given him. Allah does not require from a soul except (according to) what he has given it. Allah will bring about after hardship, ease”⁶⁸.

66Aliyu I. A. p. 231

67Ibid p. 130

68 Qur'an 65 vs 7

Maintenance of a wife in law has special position. It should not be confused or consider the same as what is being witness in some Muslim families in Nigeria, where the maintenance of a wife is not seen as a responsibility as a result of which they (wives) support themselves and children. The right of maintenance given to a woman is not qualified. Thus it is a right given to a wife irrespective of her faith or religion, age riches or poverty, health or sickness. A wife in law is relieved from the responsibility of maintaining herself, no matter how wealthy she may be. Hence, even where a husband have less resource than his wife, it remains compulsory on him to bear the family's financial expenses in a generous and charitable way. Right to maintenance for a wife is inalienable and in case of failure by the husband to discharge that duty, she is entitled to take legal action in a court of law against him for recovery of that maintenance⁶⁹.

The following are some Hadiths in relation to maintenance of a wife.

- (i) Whatever a man gives his wife is a charity (in his record) recorded by Ahmad
- (ii) What a Muslim spends on his family, thereby seeking Allah's reward, it is regarded as *Sadaq* for him⁷⁰.
- (iii) Indeed, whatever any of you spend on your family, you will be rewarded for it- even for a Mosel of food that you raise to your wife's mouth⁷¹.
- (iv) Whatever you feed yourself is charity for you, whatever you feed your child is charity for you, whatever you feed your wife is charity for you, and whatever you feed your servant is a charity, for you⁷².

69 Audi J.A. opcit p. 285.

70 Recorded by Al-Bukhari, Book 2 Hadith 52.

71 Recorded by Al-Bukhari, Muslim and others others. In: Al-Jibaly M. opcit p.35

72 Recorded by Al-Bukhari, Book 64 Hadith 263.

- (v) When Allah gives one of you some good (i.e, Sustenance), he should start by (spending on) himself and his family members⁷³.
- (vi) A sufficient sin you would be that you hold (support) off those whom you are responsible for feeding⁷⁴.
- (vii) The believers who are most complete in faith are those of best manners; and the best among them are those who are best (in treatment) to their women⁷⁵.

Going by the above traditions of the holy prophet (PBUH), he must lodge her where he himself resides, according to his means. This wife's lodge must be adequate so as to ensure her privacy, comfort and independence. This is interpreted by the major schools of law to mean that the lodging must befit the means and life style of both mates. What is true of lodging is also true of clothing, food and general care. The wife has the right to be clothed, fed and cared for by the husband in accordance with his means and style of life. This right is to be exercised without extravagance or miserliness⁷⁶.

4.6 Components of maintenance

i) Maintenance in Sickness

The Maliki jurist and some others are of the view that a wife will not be entitled to maintenance once she is sick as she cannot effectively discharge her marital roles and responsibilities as a wife and which is the only reason that entitles her to maintenance by the husband⁷⁷.

⁷³ Recorded by Muslim, Ahmad and others. In: Al-Jibaly M.opcit p.35

⁷⁴ Recorded by Muslim. In: Al-Jibaly M.op cit p.37.

⁷⁵ Recorded by at – Timidhi and Ibn Hibban.

⁷⁶ Abd al-Ati H.opcit p.152.

⁷⁷ Ibid p. 151

Hanafi Jurists are of the view that even if the wife is sick, she is still entitled to maintenance. They based their view on the principle of Ihtisan i.e. moral and practical consideration. They opined that it is still the duty of the husband to provide maintenance for her. For instance, the court of Appeal of Kwara State in the case of Taibat Aduni vs Banji Jimoh⁷⁸ held that “for a husband to foot the medical bills of his wife is a moral and not a legal duty. It is not enforceable. Going by the provisions of the Qur’an and the Sunnah of the prophet (PBUH) it is incumbent on the husband to care for and show kindness to his wife. This can also be applied in care when the wife is sick, if the husband is enjoined to care for his wife and show kindness to her then the kindness should also be extended to the situation where the wife falls sick, and it also means that the husband should provide for all the necessary things, such as feeding, medicine and medical charge. Since neither the Qur’an nor the Sunnah raised the problem in any way that can be likened to the approach of the jurists that hold that a sick wife is not entitled to maintenance. Moreover none of them provide any authority evidence to support their positions⁷⁹.

ii) Maintenance in Recalcitrance (NUSHUZ)

As regards the recalcitrance wife, the entire jurist agreed that such wife is not entitled to maintenance. Recalcitrance is manifested by the wife’s aversion to her husband, hatred toward him, and disinterest in his companionship or attraction to another person⁸⁰. Recalcitrance may be overt or covert jurists seem to be concerned with the overt type that has become a legal case calling for a court decision. The covert type is dealt with in the Qur’an in a way aimed at solving the family problem as privately and peacefully as possible, without allowing the issue to become a public record. The Qur’an states that if a

78 Taibat Adunni vs Banji Jimoh Appeal No KW3/SCA/CV/AP/19/95

79 Abd al-Ati H. op cit p. 152

80 Ibid p 158.

husband is fearful of his wife's recalcitrance, he must exhort her with sound advice and guidance. If that does not solve the problem, he must take the second step by "abandoning" her bed. And if that does not remedy the situation, then the third and last step is to apply physical discipline. For example slapping or hitting in a symbolic way that is not humiliating, injurious or derogative, if he abuses this disciplinarian authority in any way, such as using the second or third step where the first suffices, his own action is forbidden and legally punishable⁸¹.

iii) Maintenance in Poverty

If the husband's financial situation does not allow him to discharge his obligation to his wife, it is the opinion of the Hanafi school that this obligation remains, and the wife shall be supported by her relatives who would be responsible for her if she were not married, or that she has the option to borrow on his behalf in proportion to her needs. In either case whatever she spends becomes a claim or debt against her husband which he is to pay when his financial situations improves. The Zahiri School maintains that marriage must be preserved irrespective of the husband's financial situation.

iv) Maintenance in the Waiting Period (IDDAH)

The woman whose divorce has been initiated and pronounced by the husband is fully entitled to complete maintenance as long as she is still in the waiting period. As the holy Qur'an prescribed the time when divorce shall be pronounced and the treatment that shall be given to the divorced woman during Iddah. The Qur'an says:

"Thus when they fulfill their term appointed iddah either take them back on equitable term or part with them on equitable term"⁸².

⁸¹Ibid p. 159.

⁸² Qur'an 65 vs 2

She may not be expelled from her home nor should she move there from, unless she has committed an evident offence of indecency. The repudiator is fully responsible for her food, clothing, and if necessary, services just as if the marriage were still completely in fact, by which time she will probably have adjusted to the new changes in her life.

She must be provided for on the same scale, according to his status in life. In the event of pregnancy the Holy Qur'an provides additional responsibility no separation will be possible until after the child is born. It is provided in the Qur'an that the period of idda of a pregnant woman is until she delivers⁸³. Hence, she must be properly maintained. As for the nursing of the child, welfare and home of the mother remained the duty of the father⁸⁴.

Limitation on the right of the wife

A wife loses her right to maintenance in the following circumstances:

- a) When she refuses to co-habit with the husband without any lawful justification
- b) When she refuses to admit him into her house where they have previously staying together.
- c) If she refuses to accompany him without lawful causes⁸⁵
- d) If she packed and moved out of her matrimonial home without her husband's permission or any religious cause.
- e) If she is in prisoned after committing a crime
- f) If she travelled without her husband's permission⁸⁶.

⁸³ Qur 'an 65 v 4

⁸⁴ Abdul Rahman D. op cit p. 206

⁸⁵ Shani M. I. The Institution of marriage under Islamic Law: (with particular reference to Nigeria) (Unpublished) LLM Thesis Faculty of Law ABU Zaria 1977 p. 172-173

⁸⁶ Abdul Rahman D. op cit p. 205

CHAPTER FIVE

A CRITICAL ANALYSIS OF THE PRACTICE OF THE MUSLIMS IN RELATION TO MARITAL RIGHTS AND OBLIGATIONS

5.1 Introduction

In the previous chapters, the essentials of marriage, rights and obligations of spouses have been discussed. This chapter carried out critical analysis of the practice of Muslims in relation to marriage as well as the rights and obligation of the spouses in marriage.

Marriage (in Islam) is the basis of the family and Islam has provided elaborate laws to regulate it in a way that brings about its happiness and success¹. Marriage under the shari'ah is based on justice and simplicity. However a lot of complications and injustices have been introduced into it².

5.2 Abuses of the Rules of Islam in Relation to Marriage among Muslim Community

- i) It is prescribed in Islam that the husband has the responsibility for the wife shelter, must lodge her where he himself resides according to his means, without causing her to suffer³. The wife's lodge must be adequate so as to ensure her privacy, comfort and independent. It is the wife's home in her capacity as wife, she has exclusive right to it⁴. The husband responsibility for the wife shelter does not entitle him to impose upon her any disagreeable arrangement of residence⁵. Allah

¹Aliyu I. A. opcit p. 371.

² Ibid

³ Abd al Ati H. opcit p. 149

⁴ Ibid

⁵ Ibid

says in the Qur'an:

Lodge them where you are lodging, according to your means
and do not press them, so as to straighten their circumstances
Let the man of plenty expend out of his plenty as for him whose
provision is stinted for him, let him expend of what God has given
him. God charges no one beyond his means. After difficulty,
God will soon grant relief⁶.

Nowadays in our society, some men do marry wife without having a place to keep her or having a suitable place to keep her, a woman under Islamic law is entitled to privacy, at least to have one room to herself but some Muslim mendo merge two wives into a room in order for them to have a space to accommodate a new wife, this is an abuse of the rule of Islam. This is common among the uneducated.

- ii) Polygamy: Under Islamic law, marrying more than one wife is allowed for one who has the means to take care of the women. One of the conditions for permitting the practice of the polygamy, which has been inferred from sound hadith is the ability to provide for and maintain the wives adequately⁷. Thus if a man has no means of livelihood with which he can maintain more than one wife, then it is not proper for him to marry more than one wife⁸. Certain moral exhortations and legal ruling are interpreted as checks against the abuse of polygamy, for instance the prophet is reported to have proclaimed Allah's condemnation of the "sensual" man and woman. When asked whom he meant, he replied, they are those who married frequently in pursuit of canal pleasure⁹. It is evidence from this explanation that the

6 Qur'an 65 vs 5 -6

7 Aliyu I. A. op cit p. 85

8 Aliyu I. A. (2010) Protection of womens' rights under the Shari'a Dakwah Corner Book Store Darul Ihsan Kuala Lumpur p. 85 – 86

9 Ibid

Shari'a, while permitting polygamy to man, has taken many steps to protect the marital life of women in respect of it. But among the Muslim one will see a man who can hardly feed himself with his earning marrying two, three or four wives as the case may be. This is an abuse of Islamic law which allows man to marry more than one wife. As has been mentioned in the earlier chapter, when a man whose income is so little to the extent that it is not even enough for himself and himself alone, it would be expected that such man would be contented with only one wife, but reverse is the case in our society, such man will marry up to four wives, the consequences of his action will definitely not be on himself and the wives alone but also on the children which are the products of the marriage.

Each wife may have almost ten children or sometimes more than ten, the feeding of the children are left for the mothers whose income is not also enough to serve that purpose. The right of man to marry four wives is not absolute. Allah has put a clause in the verse which allows men to marry more than one wife. He (The Almighty) says if you cannot do justice you should marry one. It is part of doing justice to cater for the wives as well as the children adequately.

- iii) Pervasive ignorance: According to the sharia, the husband who is the head of the family is the maintainer, protector and role model for the family. The wife is the nucleus around which the family is nurtured and sustained. Pervasive ignorance of the responsibilities of the couple to each other and the role of the parents in the *tarbiyah*, upbringing and socialization in our society is responsible for the violations of children and women's rights. If the man who is the head of the household lacks

knowledge and the wife is no better, a very poor foundation is laid for family life¹⁰.

iv) Exploitation and Abuse of Wives

Although sharia enjoins kindness to wives, their abuse and exploitation is widespread in both urban and rural areas. Due to the current economic hardship being experienced by many, husbands are increasingly finding it difficult to provide the basic needs for their families. Yet some men who are poor still marry more wives, believing that it is a panacea for relieving their poverty.

The result is that wives are clustered in ramshackle, crowded homes. They are deprived of basic necessities such as adequate nutrition, clothing and healthcare and are left to fend for themselves by either engaging in income generation activities or sending children to hawk. In addition to eking out a living, they undertake heavy domestic chores such as laundry, cooking, drawing water from wells, and gathering firewood¹¹.

This overburdened and malnourished wife is also expected to manage pregnancies and rear healthy children. The health and social implications of all these are obvious. Young girls who are sent out to hawk are exposed to sexual abuse through overtures by men who pose as buyers of their wares. Children reared in such situations of deprivation are often malnourished and stunted in their development¹².

In order to buttress the above analyses, a study of Shari'a court cases revealed that women are being denied their rights to maintenance. For instance in the case of Asmau Sani vs

10 Yusuf B. op cit p. 14

11 Ibid p. 15

12 Ibid

Sulaiman Abdulkadir, the complainant complained that the defendant is not given her food and that she only eats once in a day and that he is disregarding her parent. The court asked the defendant whether it is true that he has not been given her food he denied but he agreed the fact that he used to beat her. The court gave them time to see whether they can settle. The defendant said that if she is not going back to his house she should pay the *sadaq* which he has given her. When they returned they did not settle and the complainant said she did not want to return to the defendant's house again. The court then dissolved the marriage and did not award a penny to the defendant and also ordered him to return the property that he has taking away to the complainant. The court held as follows:

I Alh. Muhammad Guado Ahmad of USC I GRA Zaria made a decision that this marriage should be dissolved without paying any kobo, for the reason that the husband has been beating and maltreating the woman and the property he seized should be returned¹³.

Also in Afsat Ibrahim vs Badamasi Murtala, the complainant sued her husband for the reason that she wants the court to dissolve the marriage because he has been maltreating her, he abandoned her and he is not showing love they are together for six years and they have 3 issues which one of them is no more. The defendant was not present but he was represented. The lawyer said the allegation was not true but asked the court to give them time to see whether they can settle and the court gave them 3 weeks. On the adjourned day the defendant and his lawyer were not in court until 3:20. The court ordered that he should be given another summon so that he can attend the court. Then he was summoned again on the adjourned date both the defendant and his lawyer were not in court, the court adjourned the case for ruling then the court ruled that he will continue the case under order 9 rule 3 of

13 Asmau Sani vs Sulaiman Abdulkadir CNO\KDS\139\USC\2012

SCPC 2010. The court continue the case, the court asked the complainant whether during the time given for settlement the husband met her for settlement she said no. Then the court asked her what she wanted she said she wanted the marriage to be dissolved. The court asked her whether she has witnesses she then brought her father and her brother then the court sees as not fit to bear her witness; the court asked whether she had more she said no. the court asked her the amount the husband paid for her *Sadaq* she said 15 thousand naira for her *Sadaq* and 3 thousand for her parents.

The court then said if she wants the marriage to be dissolved she should pay the money then she did and the court dissolved the marriage. After a week the husband came to the court begging the court to allow him see the wife so that they can settle, the court asked him to furnish the court with reason why he has not appear before the court when he was summoned. He said it was the wife that told him not to come. The court asked him to produce witness to prove that it was the wife who told him not to come; he did not have any witness. He appealed to SCA the appeal was not successful then he appealed to court of Appeal it was not successful and they still affirm the judgment of the lower court.

Going by the record of the court it could be seen that in most cases, when the court asked the woman to proof the allegation of maltreatment and lack of maintenance, they cannot proof and as such if they cannot prove, the court cannot act upon such allegation, and the husband will always deny the allegation. Even whether the woman have witnesses to proof the allegation, the witnesses are the relative of the husband and they will not want to testify against their brother, where they have no proof, the court cannot act and the husband will not want to divorce the woman unless they are ready to pay back the *Sadaq* and mostly in such cases the court will just advise the woman to be patient and go and stay

with her husband and children¹⁴.

In the case of Sadiqa Dalhatu vs Jibril Danlami, the plaintiff sued the defendant in order to know her position in the marriage she was just one year in the house the defendant is not taking care of her. The plaintiff complained that the defendant has been beating her and maltreating her. The court asked her to produce witnesses but she said she had none, the court asked her to go back to her house she refused, the court then gave them time to go and reconcile. When they came back the plaintiff brought more issues that the defendant has been beating and maltreating her, again she was asked to produce witnesses she had none. The defendant denied all the allegation and the complainant had no witnesses because according to her she leave alone with him in the house. The court said since she had no witness she should go back to her house but she refused. The defendant then demanded her to pay back the *Sadaq* and the materials he had bought for her. The court held that since she has stayed with him for more than one year she needs not to return the materials but she should return the *Sadaq*¹⁵.

In the case of Afusat Abake vs Alhaji Isiaka Asewa case, the plaintiff sued the defendant for divorce in the trial court on the ground of lack of care and maintenance. The defendant did not deny the lack of care and maintenance levied against him but instead he urged the court to grant the appellant's prayer. He later counter-claimed for a refund of dowry. The appellant denied having taken any dowry from the respondent. The trial court instead of asking the appellant to substantiate her allegation of lack of care and maintenance recklessly asked the respondent to state his claims against the appellant.

The defendant/respondent put up the total sum of N29,700.00 against the plaintiff/appellant

14 Afsat Ibrahim vs Badamasi Murtala CNO\KDS\135\USC\2012

15 Sadiqa Dalhatu vs Jibril Danlami. CNO\KDS\149\USC\2012

out of them the sum of N24.800.00 was granted by the trial court to be refunded to the respondent. The appellant was dissatisfied with this judgment and appealed against the judgement. On appeal, the appellate court, after careful perusal of the record of proceedings of the trial court held that the trial court had grossly confused and muddled up the procedure in a case which involved *Darar*, maltreatment case if proved would exonerate women from paying even a kobo back to her husband.

The court then held that it is our considered view that where the plaintiff before the trial court rests her case solely on *Darar* of any nature it is not only proper but mandatory on the trial court to first of all try to find out whether the allegation of *Darar* is proved or not. In this regard the court would call on the woman to substantiate her allegation of *Darar*(maltreatment) by calling witnesses to prove her case. If after that, the woman cannot prove the allegation the woman should either return to her matrimonial house or pay the exact amount demanded by the husband to release herself from the bondage of marriage. The court held further that the trial court has confused itself when it closed its eyes against such a vital Islamic procedure on *Darar* and quickly jumped into that procedure and so found the appellant liable to a refund of dowry. This act of the trial court is not only fatal to the whole proceedings it also renders it a nullity. The court set aside the judgment of the trial court and ordered a retrial *denovo*¹⁶.

Also in *Alikali Matsu vs Fatima Alikali*, in the trial court, the plaintiff Fatima Alikali sued the defendant/appellant for lack of maintenance, the trial court ordered the plaintiff/respondent to pay the sum of ₦8,000 she offered to pay to the Defendant/Appellant to obtain her release or forfeit it within 30 days. Hence the applicant

¹⁶Afusat Abake vs Alhaji Isiaka Asewa case Appeal No KWS/SCA/CV/AP/K/16/195

filed an appeal to challenge the trial court's decision.

On appeal, the appellate court was of the view that an issue of this nature does not lastly or otherwise lead to dissolution of marriage. Islamic law provides procedural measure to arrive at justice of such matter. Neither the prove of dower nor its refund arises in the circumstances where a wife alleges maltreatment. Islamic law has laid down special procedure to deal with such claims. The onus of proof lies squarely on the shoulder of wife who alleges that her husband maltreats her. Islamic law lays down two ways to prove the claims.

The court then referred to page 97 of *Ihkamul Ahkam 'ala Tuhfatil mulkan* and reads as follows: either a husband maltreating his wife is established by one of the following evidence of not less than two competent witnesses or supported by what has become household information that husband x harms his wife z by:

1. Beating or insulting her without any wrong doing calling for it.
2. That he starves her in spite of his ability to provide for her
3. Keeps malice /forsakes her or
4. Similar acts which injure the feelings of woman.

On the basis of the following authority, a wife suffers *Darar*, maltreatment when her husband beats or abuse her for no good reason known to Islamic law or decides to forsake her or does her any similar deed capable of harming a woman¹⁷.

A close perusal of the lower courts judgement will reveal the miscarriage of justice that is being done to women who suffer maltreatment from their husbands. The role of the court is to ask the woman who alleges maltreatment to prove her case, where such case is

¹⁷ Alikali Matsu vs Fatima alikali Appeal No.KW3/SCA/CV/AP/LF/28/2005p302.

successfully proven such does not have to pay back.

There are a lot of cases in Shari'a court which showed that Muslim women are being denied their right to maintenance, and mostly these women are not educated and as such they do not know how to make their case in order to show the court that they truly lack maintenance. Mostly the courts ask them to produce witnesses failing which the courts ask them to go back to their husbands' houses for lack of evidence to proof their cases. Where the wife insists on not going back she is asked to return the *sadaq* given to her by the husband which most of the time she may not be able to do so.

The procedure in accordance to Islamic law as stated by the Kwara state Shari'a court of appeal in the case of Afusat Abake vs Alhaji Isiaka Asewa, is that:

it is not only proper but mandatory on the trial court to first of all try to find out whether the allegation of *Darar* is proved or not. In this regard the court would call on the woman to substantiate her allegation of *Darar* (maltreatment) by calling witnesses to prove her case. If after that, the woman cannot prove the allegation the woman should either return to her matrimonial house or pay the exact amount demanded by the husband to release herself from the bondage of marriage.

For example the case of Sadiqa Dalhatu who had no witness to proof her case and was asked to repay her *sadaq* to her husband. Where however the husband admits having in any way maltreated the women, the court dissolves the marriage without asking the woman to pay back her *sadaq* to her husband as in the case of Asmau Sulaiman.

CHAPTER SIX

SUMMARY AND CONCLUSION

6.1 Summary

Marriage is the commitment that married spouses make to one another as well as to Almighty Allah. It is a kind of commitment in which they find mutual fulfillment and self-realization, love and peace, compassion and serenity, comfort and hope.

Islam unlike any other religion is a strong advocate of marriage. There is no place for celibacy in Islam, like in Roman catholic priest and nuns. The prophet (PBUH) has said “there is no celibacy in Islam¹”.

Marriage in Islam, is the only right form of relationship between man and woman, for it establishes a family and enables them to undertake and fulfill their social responsibilities with devotion and sincerity

It is obedience to the command of Allah, who says in the Qur'an: “Marry those among you who are unmarried and your slaves and slave girls who are righteous. If they are poor Allah will enrich them from His overflowing favour”².

Marriage is following the guidance of our beloved prophet (PBUH) and other messengers of Allah. Almighty Allah said in His description of the messengers: “We sent messengers before you and gave them wives and children too”³.

Because of the importance of marriage in Islam, the *Shari'ah* gives the marriage contract a special attention and provides for certain elements that are essential to the validity of the

1 Bukhari 67:8 In: Abdul Raham D. op cit p. 120

2 Qur'an 24 v 32

3 Qur'an 13 v 38

contract. They are as follows:

- i Offer and acceptance
- ii The *wali*
- iii *Sadaq*
- iv Witnesses
- v Prohibited degree of marriage

One of the conditions of a valid marriage is the consent of the parties.

Under Islamic law guardianship in marriage is a condition for validity of marriage. *Sadaq* has been mentioned in the holy Qur'an as an essential part of Muslim marriage. *Sadaq* is not like the African custom of giving a bride - price since marriage in Islam is not sale of a girl to a husband. In Islam, *Sadaq* is a marriage gift from the bride groom to his bride and becomes her exclusive property; it is given by the husband to the bride as mark of respect for her.

Both husband and wife have certain rights and duties. Both man and woman have a great responsibility in establishing and nurturing the family unit. Being master and holders of responsibility, both of them are also answerable before Allah (SWT) for their responsibilities.

In order to appreciate the topic as discussed in the earlier chapters, questionnaires were prepared, distributed as shown in table 1 and responses collated as to assess the extent of compliance of the Muslims to the Islamic Law Provisions relating to marital rights and obligations of spouses in marriage. This was supplemented by analysis of response to different types of questions that were used to show the practice of Muslim in relation to rights and obligations of spouses in marriage as well as to show the extent of compliance to the Islamic law in that regards.

The respondents' response to the questions on age and literacy level was recorded with a view to capture the extent of respondents' ability to understand the concept of marriage and issues related to marriage. Responses on occupation were recorded in order to show whether type of occupation has effect on the maintenance of the family. In the same vein, the question on the marital status was recorded in order to show that the response of the respondent is based on personal experience. Question on sex of respondents was recorded in order to show that the opinion of both male and female were sampled. Also response on the state of origin was recorded in order to show that the Muslim practice in relation to duty and obligation in marriage in some area is not different from other places.

In table 2, the respondents' responses revealed that Muslim women do carry out their obligations in accordance with Islamic law. The table showed that 51 out of 60 said yes to the question as to whether Muslim women are carrying out their obligations towards their husbands. None agreed that they are not carrying out their obligations, while only 9 out of 60 said that they are carrying out their obligations though not as expected. That is 85% say yes and 15% say not as expected.

Also from table 2, the respondents' responses revealed that some Muslim men are not carrying out their obligations in accordance to Islamic teachings. The table showed that 4 out of 60 respondents agreed that Muslim men do carry out their obligations in accordance to Islamic teachings while 48 respondents say no to the question and 8 respondents opined that they are performing their obligations but not as expected. That is: 7% say yes, 80% say No and 13% say not as expected.

Responses of the respondents on polygamy were recorded in order to show that polygamy is common in our society. The result showed that 100% respondents agreed that polygamy is common in our society.

From the table, only 10% of respondents agreed that the wives in polygamy are well taken care of , while 67% disagreed and 23% said not as expected.

As to whether Muslim women are accorded their right in accordance to Islamic law, 7% said yes to the question, 50% said no while 43% said not as expected.

6.2 Findings

In the foregoing chapters of this work, we have discussed the provisions of the law in relation to marital rights and obligations of spouse under Islamic law. It is one thing to know the law in theory in respect of a given matter, and it is another thing entirely when it comes to practicing the provision of such law. It is in view of this that one will discover that there are a lot of lapses in adhering to and in complying with the provisions of law on marriage institution especially as it relates to marital rights and obligations of spouse.

1. There are lapses in adherence to Islamic provisions in relation to marital rights and obligations by the spouses in both rural and urban areas. Some Muslims do not view marriage institutions as an institution worthy of the name. To them marriage is no more than an institution ordained for the satisfaction of their sexual desires. Marriage partners often get married without taking into consideration all that it entails in the institution. In facts many a family unit suffers cases of serious setbacks and unhealthy development because of the spouses failure to comply with the religion-social injunctions of the marriage institution. Under Islamic Law the rights of spouses are well stated but due to ignorance and sometimes intentionally and lack of respect to the Laws of Allah, the wives' rights are denied. Although sharia enjoins kindness to wives, their abuse and exploitation is widespread in both urban and rural areas. Wives are clustered in ramshackle, crowded homes. They are deprived of basic necessities such as adequate nutrition, clothing and healthcare and

are left to fend for themselves by either engaging in income generation activities or sending children to hawk.

2. Spouses are ignorant of their respective Islamic rights and obligations which as a result end up in dissolution of marriages. Some Muslims today, especially married spouses are mostly ignorant of what is expected of them as husband and wife. Many spouses do not know the specific rights and obligation which shall govern their conduct as husband and wife, it is hence very common to find cases of marriage dissolution resulting from lack of respect for the law of marriage of which the spouses know little or nothing about.
3. Different cultures of Muslim societies influence what *Sadaq* is to be given rather than what Islam provided. While the shari'ah sees the *sadaq* as a token of respect and recognition of the independent status of women, which can be in any form (accepted by the shari'ah) and must not be exorbitant, the various bodies of customs operating among the Muslims in our society have turned the whole thing into an unhealthy and scandalous exercise.

6.3 Recommendations

As a result of foregoing findings, this research work puts forward the following recommendations with the hope that they may help immensely in reducing the problems affecting the institution of marriage or providing a lasting solution to them.

- i All intending couples should endeavour to be educated about their rights and responsibilities as husband and wife and towards their children in marriage so that they will be aware of the legal consequences of marriage in both rural and urban areas.

- ii There should be massive enlightenment campaign in order to reduce disputes, aggrieved spouse should seek reconciliation or redress in the court.
- iii Supremacy of Islamic law regarding *Sadaq* should be upheld by Muslims rather than their cultural practices.

It is concluded that husband and wife have certain rights and duties. Both man and woman have a great responsibility in establishing and nurturing the family unit. Being master and holders of responsibility, both of them are also answerable before Allah (SWT) for their responsibilities.

The woman has the duty to obey and respect the husband. One of the most important ways in which a Muslim woman obeys her husband is by respecting his wishes with regards to the permissible pleasure of daily life, such as social visit, food, dress, speech etc. The more she responds to his wishes in such matters, the happier and more enjoyable the couple life becomes and the closer it is to the spirit and teaching of Islam. However, the husband should only be obeyed in matters that do not involve disobeying Allah (SWT).

The true sincere Muslim woman understands the heavy burden that Islam has placed on her shoulders by obliging her to be a good wife to her husband, to surround him with care and meet his every need, to give him enjoyment and to renew his energy so that he may fulfil his mission in life.

The woman has rights and obligations. Her right must be fulfilled in serious and fair manner: this is an important requirement in Islam; neglecting it constitutes a clear act of disobedience and threatens the wellbeing of the Muslim society.

The two spouses should be fair and just in dealing with each other.

Maintenance of a wife in law has special position. It should not be confused or consider the same as what is being witnessed in society, where the maintenance of a wife is not seen as a responsibility as a result of which they (wives) support themselves and children. The right of maintenance given to a woman is not qualified. Thus it is a right given to a wife irrespective of her faith or religion, age riches or poverty, health or sickness. A wife in law is relieved from the responsibility of maintaining herself, no matter how wealthy she may be. Hence, even where a husband has less resource than his wife, it remains compulsory on him to bear the family financial expenses in a generous and charitable way.

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APPENDIX
QUESTIONNAIRE

**THE PROPOSED QUESTIONNAIRE ON MARITAL RIGHTS AND
OBLIGATIONS IN ISLAMIC LAW: A CRITICAL ANALYSIS OF ITS PRACTICE
IN NORTHERN NIGERIA**

Please kindly assist in answering and filling in your response to the following questions:

- 1) Age _____
- 2) Occupation _____
- 3) What is your literature level?
(a) High (b) medium (c) Low
- 4) What is your marital status
(a) Single (b) Married (c) Divorced
- 5) Your Sex
(a) Female (b) male
- 6) Your state of Origin
- 7) Do you think Muslim women do respect and obey their husband in accordance to Islamic law? (a) Yes (b) No (c) Not as expected
- 8) Do Muslim men maintain their wives in accordance to Islamic Teaching?
(a) Yes (b) No (c) Not as expected
- 9) Among Polygamy and monogamy which one do you think is higher among Muslim (a) Yes (b) No (c) Not as expected
- 10) Do you think the children in polygamous family are generally well taken care of?
(a) Yes (b) No (c) Not as expected

Table 1: Distribution of questionnaire and response which depicts respondents profile age, occupation, literacy level, marital status, sex and state of origin.

Questions	Response Options	Respondents	% of Respondent
Age	Adult	60	100
	Minor	Nil	Nil
What is your literacy level	High (Higher Institution)	5	8
	Medium (Secondary)	15	25
	Low (Primary)	35	50
	None of the above	10	17
What is your occupation	Civil Servant	20	33
	Trader	20	33
	No Job	20	33
What is your marital status	Married	60	100
	Single	Nil	
Sex	Male	30	50
	Female	30	50
Your state of origin	Kano	12	20
	Kaduna	25	42
	Katsina	10	17
	Zamfara	4	7
	Sokoto	5	8
	Bauchi	4	7

Table 2: Questions and response which captured how people are complying with provision of Islamic law in relation to rights and obligations of spouses.

S/No	Questions	Response Options	Respondents	% respondent
1	Do you think Muslim women do respect and obey their husband in accordance to Islamic law?	Yes	51	85
		No	-	
		Not as expected	9	15
2	Do Muslim men maintain their wives in accordance to Islamic Teaching	Yes	4	7
		No	48	80
		Not as expected	8	13
3	Among Polygamy and monogamy which one do you think is higher among Muslim	Polygamy	60	100
		Monogamy	Nil	
4	Do you think the wives in polygamous family are generally well taken care of	Yes	6	10
		No	40	67
		Not as expected	14	23
5	Do you think Muslim women are accorded their rights in accordance to Islamic law as a wife or as a child	Yes	4	7
		No	30	50
		Not as expected	26	43